SCHEDULE II

TABULAR STATEMENT OF OFFENCES

EXPLANATORY NOTE.–The entries in the second and seventh columns of this schedule, headed respectively "Offence" and "Punishment under the Penal Code", are not intended as definitions of the offences and punishments described in the several corresponding sections of the Penal Code, or even as abstracts of those sections, but merely as references to the subject of the section, the number of which is given in the first column.

CHAPTER V.– ABETMENT

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code	By what Court triable.
109	Abetment of any offence, if the act abetted is committed in consequence, and where no express provision is made for its punishment.	May arrest without warrant if arrest for the offence abetted may be made without warrant, but not otherwise.	According as a warrant or summons may issue for the offence abetted.	According as the offence abetted is bailable or not.	According as the offence abetted is compoundable or not.	The same punishment as for the offence abetted.	The Court by which the offence abetted is triable.
110.	Abetment of any offence, if the person abetted does the act with a different intention from that of the abettor.	May arrest without warrant if arrest for the offence abetted may be made without warrant but not otherwise.	According as a warrant or summons may issue for the offence abetted.	According as the offence abetted is bailable or not.	According as the offence abetted is compoundable or not.	The same punishment as for the offence abetted.	Ditto.

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compound-able or not.	Punishment under the Penal Code	By what Court triable.
111.	Abetment of any offence, when one act is abetted and a different act is done; subject to the proviso.	May arrest without warrant if arrest for the offence abetted may be made without warrant but not otherwise.	Accor-ding as a warrant or summons may issue for the offence abetted.	Accor-ding as the offence abetted is bailable or not.	According as the offence abetted is compound-able or not.	The same punishment as for the offence intended to be abetted.	The Court by which the offence abetted is triable.
113.	Abetment of any offence, when an effect is caused by the act abetted different from that intended by the abettor.	Ditto	Ditto	Ditto	Ditto	The same punishment as for the offence committed.	Ditto.
114	Abetment of any offence, if abettor is present when offence is committed.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
115	Abetment of an offence, punishable with death or *transportation for life, if the offence be not committed in consequence of the abetment.	Ditto	Ditto	Not bailable	Ditto	Imprisonment of either description for 7 years and fine.	Ditto.

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compound-able or not.	Punishment under the Penal Code	By what Court triable.
	If an act which causes harm be done in consequence of the abetment.	May arrest without warrant, if arrest for the offence abetted may be made without warrant, but not otherwise.	According as a warrant or summons may issue for the offence abetted.	Not bailable	According as the offence abetted is compound-able or not.	Imprison-ment of either description for 14 years and fine.	The Court by which the offence abetted is triable.
116	Abetment of an offence, punishable with imprisonment, if the offence be not committed in consequence of the abetment.	Ditto	Ditto	According as the offence abetted is bailable or not.	Ditto	Imprison-ment extending to a quarter part of the longest term, and of any description, provided for the offence, or fine, or both.	Ditto.
	If the abettor or the person abetted be a public servant whose duty it is to prevent the offence.	Ditto	Ditto	Ditto	Ditto	Imprisonment extending to half of the longest term, and any description, provided for the offence, or fine, or both.	Ditto

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
117	Abetting the commission of an offence by the public, or by more than ten persons.	May arrest without warrant, if arrest for the offence abetted may be made without warrant, but not otherwise.	According as a warrant or summons may issue for the offence abetted.	According as the offence abetted is bailable or not.	According as the offence abetted is compoun-dable or not.	Imprison-ment of either description for 3 years, or fine, or both.	The Court by which the offence abetted is triable.
118	Concealing a design to commit an offence punishable with death or *transporta-tion for life, if the offence be committed.	Ditto	Ditto	Not bailable	Ditto	Imprison-ment of either description for 7 years, and fine.	Ditto
	If the offence be not committed.	Ditto	Ditto	Bailable	Ditto	Imprison-ment of either description for 3 years and fine.	Ditto
119	A public servant concealing a design to commit an offence which it is his duty to prevent, if the offence be committed.	Ditto	Ditto	According as the offence abetted is bailable or not.	Ditto	Imprison-ment extending to half of the longest term, and of any description, provided for the offence, or fine, or both.	Ditto.

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code	By what Court triable.
	If the offence be punishable with death or transportation for life.	May arrest without warrant, if arrest for the offence abetted may be made without warrant, but not otherwise.	According as a warrant or summons may issue for the offence abetted.	Not bailable	According as the offence abetted is compoun- dable or not.	Imprisonment of either description for 10 years.	The Court by which the offence abetted is triable.
	If the offence be not committed	Ditto	Ditto	Bailable	Ditto	Imprisonment extending to a quarter part of the longest term, and of any description, provided for the offence, or fine, or both.	Ditto.
120	Concealing a design to commit an offence punishable with imprison- ment if the offence be committed. If the offence be not committed.	Ditto Ditto	Ditto Ditto	According as the offence concealed is bailable or not. Bailable	Ditto Ditto	Ditto Imprisonment extending to one-eighth part of the longest term, and of the description, provided for the offence, or fine, or	Ditto Ditto.

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable .
	CHAPTER VA.—CRIMINAL CONSPIRACY						
120B.	Criminal conspiracy to commit an offence punishable with death transportation or rigorous imprisonment for a term of two years or upwards.	May arrest without warrant if arrest for the offence which is the object of the conspiracy may be made without warrant, but not otherwise.	According as a warrant or summons may issue for the offence which is the object of the conspiracy.	According as the offence which is the object of the conspiracy is bailable or not.	Not compoun-dable	The same punishment as that provided for the abetment of the offence which is the object of the conspiracy.	[1][Court by which abetment of the offence which is the object of conspiracy is triable.]
	Any other criminal conspiracy.	Shall not arrest without a warrant.	Summons	Bailable	Ditto	Imprison-ment of either description for six months or fine, or both.	[2][Any Judicial Magistr-ate]
	CHAPTER VI.—OFFENCES AGAINST THE STATE						Court of Session.
121.	Waging or attempting to wage war, or abetting the waging of war, against Bangladesh.	Shall not arrest without warrant.	Warrant	Not bailable.	Not compoun-dable	Death, or [*]transporta-tion for life, and fine.	

---

1 The words "Court by which abetment of the offence which is the object of conspiracy is triable" were substituted for the entries "Court of Session when the offence which is the object of the conspiracy is triable exclusively by such Court; in the case of all other offences Court of Session, or Magistrate of the first class" by Schedule, sl. 98 of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) f the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code	By what Court triable.
121A	Conspiring to commit certain offences against the State.	Shall not arrest without warrant	Warrant	Not bailable.	Not compoun-dable	*Transporta-tion for life or any shorter term, or imprison-ment of either description for 10 years and fine.	Court of Session.
122.	Collecting arms, etc., with the intention of waging war against Bangladesh.	Ditto	Ditto	Ditto	Ditto	Transpor-tation for life, or imprison-ment of either descrip-tion for 10 years and fine.	Ditto
123.	Concealing with intent to facilitate a design to wage war.	Ditto	Dittio	Ditto	Ditto	Imprison-ment of either descrip-tion for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
123A	Condemnation of the State and advocacy of abolition of its sovereignty.	Ditto	Ditto	Ditto	Ditto	Rigorous imprison-ment for 10 years, and fine.	Ditto

---

[1] The entry was substituted for "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009), (with effect from 1st November, 2007).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
124.	Assaulting President, Government, etc., with intent to compel or restrain the exercise of any lawful power.	Shall not arrest without warrant.	Warrant	Not bailable	Not compoun-dable	Imprison-ment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
124A.	Sedition	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life or for any term and fine, or imprison-ment of either description for 3 years and fine, or fine.	Court of Session, [2][Chief Metropolitan Magistrate] or [3][Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.
125	Waging war against any Asiatic Power in alliance or at peace with Bangladesh, or abetting the waging of such war.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, and fine or imprisonment of either description for 7 years and fine, or fine.	Court of Session.

---

1 The entry was substituted for "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Chief Metropolitan Magistrate" were inserted by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

3 The words "Chief Judicial Magistrate" were substituted for the words "District Magistrate" by Section 100 (b)(ii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
126.	Committing depredation on the territories of any power in alliance or at peace with Bangladesh.	Shall not arrest without warrant.	Warrant	Not bailable	Not compoun-dable	Imprison-ment of either description for 7 years and fine, and forfeiture of certain property.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]
127.	Receiving property taken by war or depredation mentioned in sections 125 and 126.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
128.	Public servant voluntarily allowing prisoner of State or war in his custody to escape.	Ditto	Ditto	Ditto	Ditto	*Trans-portation for life, or imprison-ment of either description for 10 years, and fine.	[2][Court of Session.]
129.	Public Servant negligently suffering prisoner of State or war in his custody to escape.	Ditto	Ditto	Bailable	Ditto	Simple imprison-ment for 3 years and fine.	[3][Metropoli-tan Magistrate or Magistrate of the first class.]

---

1 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry was substituted for the former entry by section 2 of the Code of Criminal Procedure (Amendment) Act, 1980 (Act No. IV of 1980).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
130.	Aiding escape of, rescuing or harbouring, such prisoner, or offering any resistance to the recapture of such prisoner.	Shall not arrest without warrant.	Warrant	Not bailable	Not compoun-dable	*Transpor-tation for life, or imprison-ment of either description for 10 years, and fine.	Court of Session.
	CHAPTER VII.—OFFENCES RELATING TO THE ARMY AND NAVY						
131.	Abetting mutiny, or attempting to seduce an officer, soldier, sailor or air man from his allegiance or duty.	May arrest without wa rrant.	Warrant	Not bailable	Not compoun-dable	*Transpor-tation for life, or imprison-ment of either description for 10 years, and fine.	Court of Session.
132.	Abetment of mutiny, if mutiny is committed in consequence thereof.	Ditto	Ditto	Ditto	Ditto	Death, or *trans-portation for life, or imprison-ment of either description for 10 years, and fine.	Ditto
133.	Abetment of an assault by an officer, soldier, sailor of air man on his superior officer, when in the execution of his office.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]

[1] The entry was substituted for the former entry by section 2 of the Code of Criminal Procedure (Amendment) Ordinance, 1980 (Ordinance No. IV of 1980).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
134.	Abetment of such assault, if the assault is committed.	May arrest without warrant.	Warrant	Not bailable	Not compoun-dable	Imprison-ment of either description for 7 years, and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]
135.	Abetment of the description of an officer, soldier, sailor or air man.	Ditto	Ditto	Bailable	Ditto	Imprison-ment of either description for 2 years, or fine, of both.	[2][Any Judicial Magistrate].
136.	Harbouring such an officer, soldier, sailor or airman, who has deserted.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
137.	Deserter concealed on board merchant-vessel, through negligence of master or person in charge thereof.	Shall not arrest without warrant.	Summons	Ditto	Ditto	Fine of 500 Taka	[2][Any Judicial Magistrate].
138.	Abetment of act of insubordination by an officer, soldier, sailor or airman if the offence be committed in consequence.	May arrest without warrant.	Warrant	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine, or both.	Ditto.

1 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "Any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
140.	Wearing the dress or carrying any token used by a soldier, sailor or airman with intent that it may be believed that he is such a soldier, sailor or airman.	May arrest without warrant.	Summons	Bailable	Not compoun-dable	Imprison-ment of either description for 3 months, or fine of 500 taka, or both.	[1][Any Judicial Magistrate].
	CHAPTER VIII.—OFFENCES AGAINST THE PUBLIC TRANQUILLITY						
143.	Being member of an unlawful assembly.	May arrest without warrant	Summons	Bailable	Not compoun-dable	Imprison-ment of either description for 6 months or fine, or both.	[1][Any Judicial Magistrate].
144.	Joining an unlawful assembly armed with any deadly weapon.	Ditto	Warrant	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	Ditto.
145.	Joining or continuing in an unlawful assembly, knowing that it has been commanded to disperse.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.

1 The words "Any Judicial Magistrate" were substituted for the words "Any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first	Whether bailable or not.	Whether compound-able or not.	Punishment under the Penal Code	By what Court triable.
147.	Rioting	May arrest without warrant.	Warrant	Bailable	[1][Compound-dable when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either description for 2 years, or fine or both.	[2][Any Judicial Magistrate].
148.	Rioting armed with a deadly weapon.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, or fine, or both.	[3][Metropo-litan Magistrate or Magistrate of the first or second class.]
149.	If an offence be committed by any member of an unlawful assembly, every other member of such assembly shall be guilty of the offence.	According as arrest may be made without warrant for the offence or not.	According as a warrant or summons may issue for the offence.	Accor-ding as the offence is bailable or not.	[4][Not com-poundable.]	The same as for the offence.	The Court by which the offence is triable.
150.	Hiring, engaging or employing persons to take part in an unlawful assembly.	May arrest without warrant.	According to the offence committe d by the person hired, engaged or employed .	Ditto	Ditto	The same as for a member of such assembly, and for any offence committed by any member of such assembly.	Ditto

1 The entry was substituted for "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first or second class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The entry was substituted for "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
151.	Knowingly joining or continuing in any assembly of five or more persons after it has been commanded to disperse.	May arrest without warrant.	Summons	Bailable	Not com-poundable	Imprisonment of either description for 6 months, or fine, or both.	[1][Any Judicial Magistra-te].
152.	Assaulting or obstructing public servant when suppressing riot, etc.	Ditto	Warrant	Ditto	Ditto	Imprisonment of either description for 3 years, or fine, or both.	[2][Metrop-olitan Magistrate or Magistra te of the first or second class.]
153.	Wantonly giving provocation with intent to cause riot, if rioting be committed.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 1 year, or fine, or both.	[1][Any Judicial Magis-trate].
	If not committed.	Ditto	Summons	Ditto	Ditto	Imprisonment of either description for 6 months, or fine, or both.	Ditto
153A.	Promoting enmity between classes.	Shall not arrest without warrant.	Warrant	Not bailable	Ditto	Imprisonment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate]

---

1 The words "Any Judicial Magistrate" were substituted for the words "Any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first or second class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
153B.	Inducing students or institution interested in or connected with students to take part in any political activity.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magis-trate].
154.	Owner or occupier of land not giving information of riot, etc.	Shall not arrest without warrant.	Summons	Bailable	Ditto	Fine of Taka 1,000	[2][Any Judicial Magis-trate]
155.	Person for whose benefit or on whose behalf a riot takes place not using all lawful means to prevent it.	Ditto	Ditto	Ditto	Ditto	Fine	Ditto.
156.	Agent of owner or occupier for whose benefit a riot is committed not using all lawful means to prevent it.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
157.	Harbouring persons hired for an unlawful assembly.	May arrest without warrant.	Ditto	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine, or both.	Ditto.

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
158.	Being hired to take part in an unlawful assembly or riot.	May arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine, or both.	[1][Any Judicial Magis-trate].
[2][***]	Or to go armed	Ditto	Warrant	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	Ditto.
160.	Committing affray.	Shall not arrest without warrant.	Summons	Ditto	Ditto	Imprison-ment of either description for one month, or fine of 100 Taka, or both.	[1][Any Judicial Magis-trate].
CHAPTER IX.—OFFENCES BY OR RELATING TO PUBLIC SERVANTS							
161.	Being or expecting to be a public servant, and taking a gratification other than legal remuneration in respect of an official Act.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, or fine, or both.	[3][Metro-politan Magis-trate or Magistrate of the first or second class.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The figure 159 was repealed by the Repealing and Amending Act, 1925 (Act No. XXXVII of 1925).

3 The entry was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first or second class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
162.	Taking a gratification in order by corrupt or illegal means to influence a public servant.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, or fine, or both.	[1][Metro-politan Magistrate or Magistrate of the first or second class.]
163.	Taking a gratification for the exercise of personal influence with a public servant.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 1 year, or fine, or both.	[2][Any Judicial Magistrate]
164.	Abetment by public servant of the offences defined in the last two preceding clauses with reference to himself.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, or fine, or both.	[1][Metro-politan Magistrate or Magistrate of the first or second class.]
165.	Public servant obtaining any valuable thing, without consideration, from a person concerned in any proceeding or business transacted by such public servant.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto

---

1 The entry was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first or second class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
165A.	Abetment of offences under sections 161 and 165.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, or fine, or both.	Metro-politan Magistrate or Magistrate of the first class.
166.	Public servant disobeying a direction of the law with intent to cause injury to any person.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 1 year, or fine, or both.	[1][Any Judicial Magistrate]
167.	Public servant framing an incorrect document with intent to cause injury.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, or fine, or both.	[2][Metro-politan Magistrate or Magistrate of the first or second class.]
168.	Public servant unlawfully engaging in trade.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 1 year, or fine, or both.	[1][Any Judicial Magistrate]
169.	Public servant unlawfully buying or bidding for property.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 3 years, or fine, or both and confiscation of property, if purchased.	[1][Any Judicial Magistrate]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first or second class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
170.	Personating a public servant.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprisonment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate].
171.	Wearing garb or carrying token used by public servant with fraudulent intent.	Ditto	Summons	Ditto	Ditto	Imprisonment of either description for 3 months, or fine of Taka 200, or both.	Ditto.
	CHAPTER IXA.—OFFENCES RELATING TO ELECTIONS						
171E.	Bribery	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable.	Imprisonment of either description for one year, or fine, or both or if treating only, fine only.	[1][Any Judicial Magistrate].
171F.	Undue influence and personation at an election.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for one year, or fine, or both.	Ditto.
171G.	False statement in connection with an election.	Ditto	Ditto	Ditto	Ditto	Fine	Ditto.
171H.	Illegal payments in connection with elections.	Ditto	Ditto	Ditto	Ditto	Fine of 500 Taka	Ditto.
171I.	Failure to keep election accounts.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
	CHAPTER X.- CONTEMPTS OF THE LAWFUL AUTHORITY OF PUBLIC SERVANTS						
172.	Absconding to avoid service of summons or other proceeding from a public servant.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Simple imprisonment for 1 month, or fine of 500 Taka, or both.	[1][Any Judicial Magistrate].
	If summons or notice require attendance in person, etc., in a Court of Justice.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 6 months, or fine of 1,000 Taka, or both.	Ditto.
173.	Preventing the service, or the affixing of any summons or notice, or the removal of it when it has been affixed or preventing a proclamation.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 1 month, or fine of 500 Taka, or both.	[1][Any Judicial Magistrate].
	If summons, etc., require attendance in person, etc., in a Court of Justice.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 6 months, or fine of 1,000 Taka, or both.	Ditto
174.	No obeying a legal order to attend at a certain place in person or by agent, or departing therefrom without authority.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 1 month, or fine of 500 Taka, or both.	[1][Any Judicial Magistrate].

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009), section 100(b)(i) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
	If the order require personal attendance, etc., in a Court of Justice.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Simple imprisonment for 6 months, or fine of 1,000 Taka, or both.	[1][Any Judicial Magistrate].
175.	Intentionally omitting to produce a document to a public servant by a person legally bound to produce or deliver such document.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 1 month, or fine of 500 Taka, or both.	The Court in which the offence is committed subject to the provisions of Chapter XXXV; or, if not committed in a Court, a [2][Metropolitan Magistrate or Magistrate] of the first or second class.
	If the document is required to be produced in or delivered to a Court of Justice.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 6 months, or fine of 1,000 Taka, or both.	Ditto
176.	Intentionally omitting to give notice or information to a public servant by a person legally bound to give such notice or information.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 1 month, or fine of 500 Taka, or both.	[1][Any Judicial Magistrate].

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
176 contd.	If the notice or information required respects the commission of an offence, etc.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Simple imprisonment for 6 months, or fine of 1,000 Taka, or both.	[1][Any Judicial Magistrate].
	If the notice or information is required by an order passed under sub-section (1) of section 565 of this Code.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 6 months, or fine of 1,000 Taka or both.	Ditto.
177.	Knowingly furnishing false information to a public servant.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
	If the information required respects the commission of an offence, etc.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 2 years, or fine, or both.	Ditto.
178.	Refusing oath when duly required to take oath by a public servant.	Ditto	Ditto	Ditto	Ditto	Simple imprisonment for 6 months, or fine of 1,000 Taka, or both.	The Court in which the offence is committed subject to the provisions of Chapter XXXV; or, if not committed in a Court, a [2][Metropolitan Magistrate or Magistrate] of the first or second class.

---

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[2] The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
179.	Being legally bound to state truth, and refusing to answer questions.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Simple imprison-ment for 6 months, or fine of 1,000 Taka, or both.	The Court in which the offence is committed, subject to the provisions of Chapter XXXV; or, if not committed in a Court, a [1][Metropolitan Magistrate or Magistrate] of the first or second class.
180.	Refusing to sign a statement made to a public servant when legally required to do so.	Ditto	Ditto	Ditto	Ditto	Simple imprison-ment for 3 months, or fine of 500 Taka, or both.	The Court in which the offence is committed, subject to the provisions of Chapter XXXV; or, if not committed in a Court, a [2][Metropolitan Magistrate or Magistrate] of the first or second class.
181.	Knowingly stating to a public servant on oath as true that which is false.	Ditto	Warrant	Ditto	Ditto	Imprison-ment of either description for 3 years, and fine.	[3][Metropolitan Magistrate or Magistrate of the first or second class.]

---

1 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

2 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by section 34 of the Code of Criminal Procedure (Amendment) Act, 1980 (Act No. IV of 1980).

3 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
182.	Giving false information to a public servant in order to cause him to use his lawful power to the injury or annoyance of any person.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine of 1,000 Taka, or both.	[1][Any Judicial Magistrate].
183.	Resistance to the taking of property by the lawful authority of a public servant.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
184.	Obstructing sale of property offered for sale by authority of a public servant.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 1 month, or fine of 500 Taka, or both.	[1][Any Judicial Magistrate].
185.	Bidding by a person under a legal incapacity to purchase it, for property at a lawfully authorized sale, or bidding without intending to perform the obligations incurred thereby.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 1 month, or fine of 200 Taka, or both.	Ditto

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
186.	Obstructing public servant in discharge of his public functions.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 3 months, or fine of 500 Taka, or both.	[1][Any Judicial Magistrate].
187.	Omission to assist public servant when bound by law to give such assistance.	Ditto	Ditto	Ditto	Ditto	Simple imprison-ment for 1 month, or fine of 200 Taka, or both.	Ditto.
	Wilfully neglecting to aid a public servant who demands aid in the execution of process, the prevention of offences, etc.	Ditto	Ditto	Ditto	Ditto	Simple imprison-ment for 6 months, or fine of 500 Taka, or both.	Ditto.
188.	Disobedience to an order lawfully promulgated by a public servant, if such disobedience causes obstruction, annoyance or injury to persons lawfully employed.	Ditto	Ditto	Ditto	Ditto	Simple imprison-ment for 1 month, or fine of 200 Taka, or both.	[1][Any Judicial Magistrate].

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code	By what Court triable.
188. contd.	If such disobedience causes danger to human life, health or safety, etc.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine of 1,000 Taka, or both.	[1][Any Judicial Magistrate]
189.	Threatening a public servant with injury to him, or one in whom he is interested, to in-duce him to do or forbear to do any official act.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	Ditto.
190.	Threatening any person to induce him to refrain from making a legal application for protection from injury.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 1 year, or fine, or both.	Ditto.
CHAPTER XI.-FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE							
193.	Giving or fabricating false evidence in a judicial proceeding.	Shall not arrest without warrant.	Warrant	Bailable	Not compoun-dable	Imprison-ment of either description for 7 years, and fine.	[2][Metropoli-tan Magistrate or Magistrate of the first class.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
193. contd.	Giving or fabricating false evidence in any other case.	Shall not arrest without warrant.	Warrant	Bailable.	Not com-poundable	Imprison-ment of either description for 3 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
194.	Giving or fabricating false evidence with intent to cause any person to be convicted of a capital offence.	Ditto	Ditto	Not Bailable.	Ditto	*Trans-portation for life, or rigorous imprison-ment for 10 years, and fine.	Court of Session.
	If innocent person be thereby convicted and executed.	Ditto	Ditto	Ditto	Ditto	Death, or as above.	Ditto.
195.	Giving or fabricating false evidence with intent to procure conviction of an offence punishable with *transportation for life or with imprisonment for 7 years or upwards.	Ditto	Ditto	Ditto	Ditto	The same as for the offence.	Ditto.

---

[1] The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
196.	Using in a judicial proceeding evidence known to be false or fabricated.	Shall not arrest without warrant.	Warrant	According as the offence of giving such evidence is bailable or not.	Not com-poundable	The same as for giving or fabricating false evidence.	[1][Metropolitan Magistrate or Magistrate of the first class.]
197.	Knowingly issuing or signing a false certificate relating to any fact of which such certificate is by law admissible in evidence.	Ditto	Ditto	Bailable	Ditto	The same as for giving false evidence.	Ditto.
198.	Using as a true certificate one known to be false in a material point.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
199.	False statement made in any declaration which is by law receivable as evidence.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
200.	Using as true any such declaration known to be false.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.

[1] The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session or Magistrate of the first class" by section 2 of the Code of Criminal Procedure (Amendment) Act, 1980 (Act No. IV of 1980).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
201.	Causing disappearance of evidence of an offence committed, or giving false information touching it to screen the offender, if a capital offence.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 7 years, and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]
	If punishable with *transporta-tion for life or imprisonment for 10 years.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, and fine.	[2][Metropoli-tan Magistrate or Magistrate of the first or second class.]
	If punishable with less than 10 years' imprisonment.	Ditto	Ditto	Bailable	Ditto	Imprison-ment for a quarter of the longest term, and of the description, provided for the offence, or fine, or both.	[3][Metropoli-tan Magistrate or Magistrate] of the first class or Court by which the offence is triable.

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
202.	Intentional omission to give information of an offence by a person legally bound to inform.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine, or both.	[1][Any Judicial Magistrate]
203.	Giving false information respecting an offence committed.	Ditto	Warrant	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, of both.	Ditto.
204.	Secreting of destroying any document to prevent its production as evidence.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate]
205.	False personation for the purpose of any act or proceeding in a suit or criminal prosecution, or for becoming bail or security.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, or fine, or both.	[2][Metropoli-tan Magistrate or Magistrate of the first or second class.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
206.	Fraudulent removal or concealment, etc., of property to prevent its seizure as a forfeiture, or in satisfaction of a fine under sentence, or in execution of a decree.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate]
207.	Claiming property without right, or practising deception touching any right to it, to prevent its being taken as a forfeiture, or in satisfaction of a fine under sentence, or in execution of a decree.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
208.	Fraudulently suffering a decree to pass for a sum not due, or suffering decree to be executed after it has been satisfied.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate]

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
209.	False claim in a Court of Justice.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 2 years, and fine.	[1][Any Judicial Magistrate]
210.	Fraudulently obtaining a decree for a sum not due, or causing a decree to be executed after it has been satisfied.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	Ditto.
211.	False Charge of offence made with intent to injure.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
	If offence charged be punishable with imprisonment for 7 years or upwards.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, and fine.	[2][Metropoli-tan Magistrate or Magistrate of the first class.]
	If offence charged be capital, or punishable with *transportation for life.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, and fine.	Ditto

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
212.	Harbouring an offender, if the offence be capital.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 5 years, and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]
	If punishable with *transpor-tation for life, or with imprisonment for 10 years.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, and fine.	[2][Metropoli-tan Magistrate or Magistrate of the first or second class.]
	If punishable with imprison-ment for 1 year and not for 10 years.	Ditto	Ditto	Ditto	Ditto	Imprison-ment for a quarter of the longest term, and of the description, provided for the offence, or fine, or both.	[3][Metropoli-tan Magistrate or Magistrate] of the first class or Court by which the offence is triable.
213.	Taking gift, etc., to screen an offender from punishment, if the offence be capital.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]

---

1 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
213. contd.	If punishable with *transpor-tation for life or with imprison-ment for 10 years.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first or second class.]
	If with imprisonment for less than 10 years.	Ditto	Ditto	Ditto	Ditto	Imprison-ment for a quarter of the longest term, and of the description, provided for the offence, or fine or both.	[2][Metropoli-tan Magistrate or Magistrate] of the first class, or Court by which the offence is triable.
214.	Offering gift or restoration of property in consideration of screening offender, if the offence be capital.	Shall not arrest without warrant.	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, and fine.	[3][Metropoli-tan Magistrate or Magistrate of the first class.]
	If punishable with *transpor-tation for life, or with imprison-ment for 10 years.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, and fine.	[4][Ditto]

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

3 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

4 The word "Ditto" was substituted for the words "Metropolitan Magistrate or Magistrate of the first class" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

* The word "transportation for life" construed as a refernce to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
214. contd.	If with imprisonment for less than 10 years.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment for a quater of the longest term, and of the description, provided for the offence, or fine, or both.	[1][Metropoli-tan Magistrate or Magistrate] of the first class, or Court by which the offence is triable.
215.	Taking gift to help to recover movable property of which a person has been deprived by an offence, without causing apprehension of offender.	May arrest without warrant.	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	[2][Any Judicial Magistrate]
216.	Harbouring an offender who has escaped from custody, or whose apprehension has been ordered, if the offence be capital.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years and fine.	[3][Metropoli-tan Magistrate or Magistrate of the first class.]

---

1 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
216. contd.	If punishable with *transpor-tation for life, or with imprisonment for 10 years.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, with or without fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]
	If with imprisonment for 1 year and not for 10 years.	Ditto	Ditto	Ditto	Ditto	Imprison-ment for a quater of the longest term, and of the description, provided for the offence, or fine, or both.	[2][Metropoli-tan Magistrate or Magistrate] of the first class, or Court by which the offence is triable.
216A.	Harbouring robbers or dacoits.	Ditto	Ditto	Ditto	Ditto	Rigorous imprison-ment for 7 years and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]
217.	Public servant disobeying a direction of law with intent to save person from punishment, or property from forfeiture.	Shall not arrest without warrant.	Summons	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	[3][Any Judicial Magistrate]

---

1 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

2 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

3 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
218.	Public servant framing an incorrect record or writing with intent to save person from punishment, or property from forfeiture.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, with or without fine.	[1][Metropoli-tan Magistrate or Magistrate of the first or second class.]
219.	Public servant in a judicial proceeding corruptly making an pronouncing and order report, verdict or decision which he knows to be contrary to law.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, or fine, or both.	[2][Metropoli-tan Magistrate or Magistrate of the first class.]
220.	Commitment for trial or confinement by a person having authority, who knows that he is acting contrary to law.	Ditto	Ditto	Ditto	Ditto	Ditto	[2][Metropoli-tan Magistrate or Magistrate of the first class.]
221.	Intentional omission to apprehend on the part of a public servant bound by law to apprehend and offender, if the offence be capital.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, with or without fine.	[3][Metropoli-tan Magistrate or Magistrate of the first class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the words "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
221. contd.	If punishable with transportation for life, or imprisonment for 10 years.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprisonment of either description for 3 years, with or without fine.	[1][Metropoli-tan Magistrate or Magistrate of the first or second class.]
	If with imprisonment for less than 10 years.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 2 years, with or without fine.	[2][Any Judicial Magistrate]
222.	Intentional omission to apprehend on the part of a public servant bound by law to apprehend person under sentence of a Court of Justice if under sentence of death.	Ditto	Ditto	Not bailable	Ditto	Transpor-tation for life, or imprison-ment of either description for 14 years, with or without fine.	[3][[4][Chief Metropolitan Magistrate,] [5][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
	If under sentence of transportation, or transportation, imprisonment for 10 years or upwards.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, with or without fine.	[6][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "District Magistrate or Additional District Magistrate specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session, Metropolitan Magistrate" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

4 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

5 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

6 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
222. contd.	If under sentence of imprisonment for less than 10 years or lawfully committed to custody.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, or fine, or both.	[1][Metropoli-tan Magistrate or Magistrate of the first or second class.]
223.	Escape from confinement negligently suffered by a public servant.	Ditto	Summons	Ditto	Ditto	Simple imprison-ment for 2 years, or fine, or both.	[2][Any Judicial Magistrate]
224.	Resistance or obstruction by a person to his lawful apprehension.	May arrest without warrant.	Warrant	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	Ditto
225.	Resistance or obstruction to the lawful apprehension of another person, or rescuing him from lawful custody.	Ditto	Ditto	Ditto	Ditto	Ditto	[2][Any Judicial Magistrate]
	If charged with an offence punishable with *transportation for life, or imprisonment for 10 years.	Ditto	Ditto	Not bailable	Ditto	Imprison-ment of either description for 3 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
225. contd.	If charged with a capital offence.	May arrest without warrant.	Warrant	Not Bailable	Not com-poundable	Imprison-ment of either description for 7 years, and fine.	[1][Metropoli-tan Magistrate or Magistrate of the first class.]
	If the person is sentence to *transportation for life, or to transportation, or imprisonment for 10 years or upwards.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
	If under sentence of death.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or imprison-ment of either description for 10 years and fine.	[2][[3][Chief Metropolitan Magistrate,] [4][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
225A.	Omission to apprehend, or sufferance of escape, on part of public servant, in cases not otherwise provided for–						

---

[1] The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The entry "District Magistrate or Additional District Magistrate specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982) section 17.

[3] The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

[4] The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
225A. contd.	(a) in case of intentional omission or sufferance:	Shall not arrest without warrant.	Warrent	Bailable	Not com-poundable	Imprisonment of either description for 3 years, or fine, or both.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
	(b) in case of negligent omission or sufferance.	Ditto	Summons	Ditto	Ditto	Simple imprison-ment for 2 years, or fine, or both.	[2][Any Judicial Magistrate].
225B.	Resistance or obstruction to lawful apprehensive, or escape or rescue in cases not otherwise provided for.	May arrest without warrant.	Warrant	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine, or both.	Ditto
[3][***]							
227.	Violation of condition of remission of punishment.	Shall not arrest without warrant.	Summons	Ditto	Ditto	Punishment of original sentence, or, if part of the punishment has been undergone, the residue.	The Court by which the original offence was triable.

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate of Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 Section 226 and The entries of columns 2, 3, 4, 5, 6, 7 and 8 in section 226 were omitted by section 100(a) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
228.	Intentional insult of interruption to a public servant sitting in any stage of a judicial proceeding.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Simple imprisonment for 6 months, or fine of 1,000 Taka, or both.	The Court in which the offence is committed subject to the provisions of Chapter XXXV.
229.	Personation of a Jurer or assessor.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate].
	CHAPTER XII.—OFFENCES RELATING TO COIN AND GOVERNMENT STAMPS						
231.	Counterfeiting or performing any part of the process of counterfeiting coin.	May arrest without warrant.	Warrant	Not Bailable	Not compoun-dable	Imprison-ment of either description for 7 years and fine.	[2][Metropolitan Magistrate or Magistrate of the first Class.]
232.	Counterfeiting, or performing any part of the process of counterfeiting Bangladesh coin.	Ditto	Ditto	Ditto	Ditto	*Transporta-tion for life, or imprisonment of either description for 10 years, and fine.	[3][[4][Chief Metropolitan Magistrate,] [5][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry "District Magistrate or Additional District Magistrate specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

4 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

5 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
233.	Making, buying or selling instrument for the purpose of counterfeiting coin.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprison-ment of either description for 3 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
234.	Making, buying or selling instrument for the purpose of counterfeiting Bangladesh coin.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first Class.]
235.	Possession of instrument or material for the purpose of using the same for counterfeiting coin.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
	If Bangladesh coin.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 10 years, and fine.	[3][Court of Session, Chief Metropolitan Magistrate, [4][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The words and comma "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
236.	Abetting in Bangladesh the counterfeiting out of Bangladesh of coin.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	The punishment provided for abetting the counterfeiting of such coin within Bangladesh.	[1][Court of Session.]
237.	Import or export of counterfeit coin, knowing the same to be counterfeit.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 3 years, and fine.	[2][Metro-politan Magistrate or Magistrate of the first or second class.]
238.	Import or export of counterfeit of Bangladesh coin, knowing the same to be counterfeit.	Ditto	Ditto	Ditto	Ditto	*Transporta-tion for life, or imprisonment of either description for 10 years, and fine.	Court of Session.
239.	Having any counterfeit coin known to be such when it came into possession, and delivering, etc., the same to any person.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 5 years, and fine.	[3][Metro-politan Magistrate or Magistrate of the first class.]

---

1 The entry "Court of Session" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
240.	The same with respect to Bangladesh coin.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprisonment of either description for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
241.	Knowingly delivering to another any counterfeit coin as genuine which, when first possessed, the deliverer did not know to be counterfeit.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 2 years, or fine of ten times the value of the coin counterfeited, or both.	[3][Any Judicial Magistrate]
242.	Possession of counterfeit coin by a person who knew it to be counterfeit when he became possessed thereof.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 3 years, and fine.	[4][Metropolitan Magistrate or Magistrate of the first or second class.]

---

1 The entry was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words and comma "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
243.	Possession of Bangladesh coin by a person who knew it to be counterfeit when he became possessed thereof.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprisonment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
244.	Person employed in a Mint causing coin to be of a different weight or composition from that fixed by law.	Ditto	Ditto	Ditto	Ditto	Ditto	[2][Metropolitan Magistrate or Magistrate of the first class.]
245.	Unlawfully taking from a Mint any coining instrument.	Ditto	Ditto	Ditto	Ditto	Ditto	[2][Metropolitan Magistrate or Magistrate of the first class.]
246.	Fraudulently diminishing the weight or altering the composition of any coin.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 3 years, and fine.	[3][Metropolitan Magistrate or Magistrate of the first or second class.]
247.	Fraudulently diminishing the weight or altering the composition of Bangladesh coin.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, and fine.	[4][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry " Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Metropolitan Magistrate" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
248.	Altering appearance of any coin with intent that it shall pass as a coin of a different description.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprisonment of either description for 3 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
249.	Altering appearance of Bangladesh coin with intent that it shall pass as a coin of a different description.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, and fine.	[2][Ditto.]
250.	Delivery to another of coin possessed with the knowledge that it is altered.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 5 years, and fine.	Ditto.
251.	Delivery of Bangladesh coin possessed with the knowledge that it is altered.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 10 years, and fine.	[3][Court of Session, Chief Metropolitan Magistrate, [4][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The word "Ditto" was substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

3 The entry was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The words and comma "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
252.	Possession of altered coin by a person who knew it to be altered when he became possessed thereof.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprison-ment of either description for 3 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
253.	Possession of Bangladesh coin by a person who knew it to be altered when he became possessed thereof.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 5 years, and fine.	[2][Ditto.]
254.	Delivery to an other of coin as genuine which, when first possessed, the deliverer did not know to be altered.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine of ten times the value of the coin.	[3][Any Judicial Magistrate]
255.	Counterfeiting a Government stamp.	Ditto	Ditto	Bailable	Ditto	*Transpor-tation for life, or imprison-ment of either description for 10 years, and fine.	[4][[5][Chief Metropolitan Magistrate,] [6][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The word "Ditto" was substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

3 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

5 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

6 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate"by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
256.	Having possession of an instrument or material for the purpose of counterfeiting a Government stamp.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
257.	Making, buying or selling instrument for the purpose of counterfeiting a Government stamp.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first class.]
258.	Sale of counterfeit Government stamp.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
259.	Having possession of counterfeit Government stamp.	Ditto	Ditto	Ditto	Ditto	Ditto	[3][Metropolitan Magistrate or Magistrate of the first class.]
260.	Using as genuine a Government stamp known to be counterfeit.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, or fine, or both.	Ditto.

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
261.	Effacing any writing from a substance bearing a Government stamp, or removing from a document a stamp used for it with intent to cause loss to Government.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 3 years, or fine, or both.	[1][Ditto.]
262.	Using a Government stamp known to have been before used.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	[2][Any Judicial Magistrate].
263.	Erasure of mark denoting that stamp has been used.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, or fine, or both.	[3][Metropoli-tan Magistrate or Magistrate of the first or second class.]
263A.	Fictitious stamps.	Ditto	Ditto	Ditto	Ditto	Fine of 200 Taka.	[2][Any Judicial Magistrate].

---

1 The word "Ditto" was substituted for the words "Metropolitan Magistrate or Magistrate of the first class" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
	CHAPTER XIII.- OFFENCES RELATING TO WEIGHTS AND MEASURES						
264.	Fraudulent use of false instrument for weighing.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 1 year, or fine, or both.	[1][Any Judicial Magistrate]
265.	Fraudulent use of false weight or measure.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
266.	Being in possession of false weights or measures for fraudulent use.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
267.	Making or selling false weights or measures for fraudulent use.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
	CHAPTER XIV.—OFFENCES AFFECTING THE PUBLIC HEALTH, SAFETY, CONVENIENCE, DECENCY AND MORALS						
269.	Negligently doing any act known to be likely to spread infection of any disease dangerous to life.	May arrest without warrant.	Summons.	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine, or both.	[1][Any Judicial Magistrate]

1 The words " Any Judicial Magistrate" were substituted for the words " any Magistrate " by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
270.	Malignantly doing any act known to be likely to spread infection of any disease dangerous to life.	May arrest without warrant	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate]
271.	Knowingly disobeying any quarantine rule.	Shall not arrest without warrant.	Ditto	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine, or both.	Ditto.
272.	Adulterating food or drink intended for sale, so as to make the same noxious.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine of 1,000 Taka, or both.	Ditto.
273.	Selling any food or drink as food and drink, knowing the same to be noxious.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
274.	Adulterating any drug or medical preparation intended for sale so as to lessen its efficacy, or to change its operation, or to make it noxious.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine of 1,000 Taka, or both.	[1][Any Judicial Magis-trate]
275.	Offering for sale or issuing from a dispensary any drug or medical preparation known to have been adulterated.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
276.	Knowingly selling or issuing from a dispensary any drug or medical preparation as a different drug or medical preparation.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
277.	Defiling the water of a public spring or reservoir.	May arrest without warrant.	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 months, or fine of 500 Taka, or both.	[1][Any Judicial Magis-trate]

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compou-ndable or not.	Punishment under the Penal Code.	By what Court triable.
278.	Making atmosphere noxious to health.	Shall not arrest without warrant.	Summons	Bailable	Not com-pounda ble	Fine of 500 Taka	[1][Any Judicial Magistrate].
279.	Driving or riding on a public way so rashly or negligently as to endanger human life, etc.	May arrest without warrant.	Ditto	Ditto	Ditto	[2][Imprison-ment of either description for 3 years, or fine which may, subject to the minimum of 1,000 Taka, extend to 5,000 Taka, or both.]	Ditto.
280.	Navigating any vessel so rashly or negligently as to endanger human life, etc.	Ditto	Ditto	Ditto	Ditto	Ditto	[3][Metropolitan Magistrate or Magistrate] of the first or second class.
281.	Exhibition of a false light, mark or buoy.	Ditto	Warrant	Ditto	Ditto	Imprisonment of either description for 7 years, or fine, or both.	[4][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry was substituted for the former entry "Imprisonment of either description for 6 months, or fine of 1,000 Taka, or both." by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

3 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

4 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
282.	Conveying for hire any person by water, in a vessel in such a state, or so loaded as to endanger his life.	May arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine of 1,000 Taka, or both.	[1][Any Judicial Magistrate].
283.	Causing danger, obstruction or injury in any public way or line of navigation.	Ditto	Ditto	Ditto	Ditto	Fine of 200 Taka.	Ditto.
284.	Dealing with any poisonous substance so as to endanger human life, etc.	Shall not arrest without warrant.	Ditto	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine of 1,000 Taka, or both.	Ditto.
285.	Dealing with fire or any combustible matter so as to endanger human life, etc.	May arrest without warrant.	Ditto	Ditto	Ditto	Ditto	[1][Any Judicial Magistrate].
286.	So dealing with any explosive substance.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
287.	So dealing with any machinery.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine of 1,000 Taka or both.	[1][Any Judicial Magistrate].
288.	A person omitting to guard against probable danger to human life by the fall of any building over which he has a right entitling him to pull it down or repair it.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
289.	A person omitting to take order with any animal in his possession, so as to guard against danger to human life, or of grievous hurt, from such animal.	May arrest without warrant.	Ditto	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine of 1,000 Taka, or both.	[1][Any Judicial Magistrate].
290.	Committing a public nuisance.	Shall not arrest without warrant.	Ditto	Ditto	Ditto	Fine of 200 Taka	Ditto.

[1] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
291.	Continuance of nuisance after injunction to discontinue.	May arrest without warrant.	Summons	Bailable	Not com-poundable	Simple imprison-ment for 6 months, or fine, or both.	[1][Any Judicial Magistrate].
292.	Sale, etc., of obscene books, etc.	Ditto	Warrant	Ditto	Ditto	Imprison-ment of either description for 3 months, or fine, or both.	[2][Metro-politan Magistrate or Magistrate of the first or second class.]
293.	Sale, etc., of obscene objects to young persons.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine, or both.	[1][Any Judicial Magistrate].
294.	Obscene songs.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 months, or fine, or both.	[1][Any Judicial Magistrate].

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
294A.	Keeping a lottery office.	Shall not arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 6 months, or fine, or both.	[1][Any Judicial Magistrate].
	Publishing proposals relating to lotteries.	Ditto	Ditto	Ditto	Ditto	Fine of 1,000 Taka	Ditto.
[2][294B.	Offering of prize in connection with trade, etc.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 6 months, or fine, or both.	Ditto.]
	CHAPTER XV.—OFFENCES RELATING TO RELIGION						
295.	Destroying, damaging or defiling a place of worship or sacred object with intent to insult the religion of any class of persons.	May arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate.]
[3][295A.	Maliciously insulting the religion or the religious beliefs of any class.	Shall not arrest without warrant.	Warrant	Not bailable	Ditto	Ditto	[1][Any Judicial Magistrate].]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009), (with effect from 1st November, 2007).

2 Section 294B was inserted by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

3 This item was inserted by the Criminal Law Amendment Act, 1927 (Act No. XXV of 1927).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
296.	Causing a disturbance to an assembly engaged in religious worship.	May arrest without warrant.	Summons	Bailable	Not com-poundable	Imprison-ment of either description for one year, or fine, or both.	[1][Any Judicial Magistrate]
297.	Trespassing in place of worship or sepulture, disturbing funeral with intention to wound the feelings or to insult the religion of any person, or offering indignity to a human corpse.	Ditto	Ditto	Ditto	Ditto	Ditto	[1][Any Judicial Magistrate]
298.	Uttering any word or making any sound in the hearing, or making any gesture, or placing any object in the sight of any person, with intention to wound his religious feeling.	Shall not arrest without warrant.	Ditto	Ditto	Compound-able	Ditto	Ditto

[1] The words "Any Judicial Magistrate" were substituted for the words "Any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	CHAPTER XVI.- OFFENCE AFFECTING THE HUMAN BODY- ***Of Offences Affecting Life***						
302.	Murder	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Death, or *transportation for life, and fine.	Court of Session.
303.	Murder by a person under sentence of *transportation for life.	Ditto	Ditto	Ditto	Ditto	Death	Ditto.
304.	Culpable homicide not amounting to murder, if act by which the death is caused is done with intention of causing death, etc.	Ditto	Ditto	Ditto	Ditto	*Transporta-tion for life, or imprisonment of either description for 10 years, and fine.	Ditto
	If act is done with knowledge that it is likely to cause death, but without any intention to cause death, etc.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 10 years, or fine, or both.	Ditto
304A.	Causing death by rash or negligent act.	Ditto	Ditto	Bailable	Ditto	Imprisonment of either description for [1][5] years, or fine, or both.	[2][Ditto.]

---

[1] The figure "5" was substituted for the figure "2" by section 34 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

[2] The entry "Ditto" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
[1][304B.	Causing death by rash driving or riding on a public way.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprisonment of either description for [2][3 years], or fine, or both.	[3][Metropoli-tan Magistrate or Magistrate of the first class.]]
305.	Abetment of suicide committed by a child, or insane or delirious person or an idiot, or a person intoxicated.	Ditto	Ditto	Not bailable	Ditto	Death, or transportation for life, or imprisonment for 10 years, and fine.	Court of Session.
306.	Abetting the commission of suicide.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 10 years, and fine.	[4][Court of Session, Chief Metropolitan Magistrate, [5][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

---

1 Section 304B was inserted by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

2 The entry "3 years" was substituted for the former entry "7 years" by section 2 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1985 (Ordinance No. XLIX of 1985).

3 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 2 of the Code of Criminal Procedure (Amendment) Ordinance, 1984 (Ordinance No. XXII of 1984).

4 The entry was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

5 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
307.	Attempt to murder.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprisonment of either description for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
	If such act cause hurt to any person.	Ditto	Ditto	Ditto	Ditto	*Transporta-tion for life, or as above.	[3][[4][Chief Metropolitan Magistrate,] [5][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
	Attempt by life convict to	Ditto	Ditto	Ditto	Ditto	Death or as above.	[6][Court of Session.]

1 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

4 The entry was inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

5 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

6 The entry "Court of Session" was substituted for the former entry "Ditto" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	murder, if hurt is caused.						
308.	Attempt to commit culpable homicide.	May arrest without warrant.	Warrant	Bailable	Not compound-able	Imprisonment of either description for 3 years, or fine, or both.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
	If such act cause hurt to any person.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, or fine, or both.	[2][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
309.	Attempt to commit suicide.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Simple imprisonment for one year, or fine, or both.	[4][Metropolitan Magistrate or Magistrate of the first or second class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
311.	Being a thug	May arrest without warrant.	Warrant	Not Bailable	Not compound-able	*Transporta-tion for life, and fine.	[1][2][Chief Metropolitan Magistrate,] [3][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
	Of the Causing of Miscarriage; of Injuries to Unborn children; of the Exposure of Infants; and of the Concealment of births						
312.	Causing miscarriage.	Shall not arrest without warrant.	Warrant	Bailable	Not compoun-dable	Imprisonment of either description for 3 years, or fine, or both.	[4][Metropolitan Magistrate or Magistrate of the first or second class.]

---

1 The entry "District Magistrate or Additional District Magistrate specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

2 The entry "Chief Metropolitan Magistrate," was inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

3 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
312. contd.	If the woman be quick with child.	Shall not arrest without warrant.	Warrant	Bailable	Not com-poundable.	Imprison-ment of either description for 7 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
313.	Causing miscarriage without woman's consent.	Ditto	Ditto	Not bailable	Ditto	*Transpor-tation for life, or imprisonment of either description for 10 years, and fine.	[3][Court of Session.]
314.	Death caused by an act done with intent to cause miscarriage.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [4][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

1 The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "Court of Session" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
314. contd.	If act done without Woman's consent.	Shall not arrest without warrant.	Warrant	Not bailable	Not com-poundable	*Transpor-tation for life, or as above.	[1][Court of Session.]
315.	Act done with intent to prevent a child being born alive, or to cause it to die after its birth.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 10 years, or fine, or both.	[2][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
316.	Causing death of a quick unborn child by an act amounting to culpable homicide.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 10 years, and fine.	Ditto.

---

1 The entry "Court of Session" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
317.	Exposure of a child under 12 years of age by parent or person having care of it with intention of wholly abandoning it.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 7 years, or fine, or both.	[1][Metropolitan Magistrate or Magistrate of the first class.]
318.	Concealment of birth by secret disposal of dead body.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	[2][Any Judicial Magistrate]
	Of Hurt						
323.	Voluntarily causing hurt.	Shall not arrest without warrant.	Summons	Bailable	Compoun-dable	Imprison-ment of either description for 1 year or fine of 1,000 Taka or both.	[2][Any Judicial Magistrate].
324.	Voluntarily causing hurt by dangerous weapons or means.	May arrest without warrant.	Ditto	Ditto	Compoun-dable when permission is given by the Court before which a prosecution is pending.	Imprison-ment of either description for 3 years, or fine, or both.	[3][Metropolitan Magistrate or Magistrate of the first or second class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "Any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
325.	Voluntarily causing grievous hurt.	May arrest without warrant.	Summons	Bailable	Compoun-dable when permission is given by the Court before which a prosecution is pending.	Imprison-ment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
326.	Voluntarily causing grievous hurt by dangerous weapons or means.	Ditto	Ditto	Not bailable	Not compoun-dable	*Transpor-tation for life, or imprison-ment of either description for 10 years, and fine.	[2][[3][Chief Metropolitan Magistrate,] [4][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
[5][326A.	Voluntarily causing grievous hurt in respect of both eyes, head or face by means of corrosive substance, etc.	Ditto	Warrant	Ditto	Ditto	Death or *transpor-tation for life, and fine.	Court of Session].

---

1 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Sessions" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

2 The entry "District Magistrate or Additional District Magistrate specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

3 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

4 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

5 The entry "section 326A" was inserted by section 3 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1984 (Ordinance No. LXX of 1984).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
327.	Voluntarily causing hurt to extort property or a valuable security, or to constrain to do anything which is illegal or which may facilitate the commission of an offence.	May arrest without warrant.	Warrant	Not bailable	Not com-poundable	Imprisonment of either description for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
328.	Administering stupefying drug with intent to cause hurt, etc.	Ditto	Ditto	Ditto	Ditto	Ditto	[1][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
329.	Voluntarily causing grievous hurt to extort property or a valuable security, or to constrain to do anything which is illegal, or which may facilitate the commission of an offence.	Ditto	Ditto	Ditto	Ditto	*Transporta-tion for life, or imprisonment of either description for 10 years, and fine.	Court of Session.

---

1 The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
330.	Voluntarily causing hurt to extort confession or information or to compel restoration of property, etc.	May arrest without warrant.	Warrant	Bailable	Not com-poundable	Imprison-ment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
331.	Voluntarily causing grievous hurt to extort confession or information, or to compel restoration of property, etc.	Ditto	Ditto	Not bailable	Ditto	Imprison-ment of either description for 10 years, and fine.	[2][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
332.	Voluntarily causing hurt to deter public servant from his duty.	Ditto	Ditto	Bailable	Ditto	Imprison-ment of either description for 3 years, or fine, or both.	[4][Metropolitan Magistrate or Magistrate of the first or second class.]
333.	Voluntarily causing grievous hurt to deter public servant from his duty.	Ditto	Ditto	Not bailable	Ditto	Imprisonment of either description for 10 years, and fine.	[5][Court of Session, Chief Metropolitan Magistrate, [6][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

---

1 The entry "Metropolitan Magistrate of Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first or second class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

5 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

6 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code.	By what Court triable.
334.	Voluntarily causing hurt on grave and sudden provocation, not intending to hurt any other than the person who gave the provocation.	Shall not arrest without warrant.	Summons	Bailable	Compoundable	Imprison-ment of either description for 1 month, or fine of 500 Taka or both.	[1][Any Judicial Magis-trate].
335.	Causing grievous hurt on grave and sudden provocation, not intending to hurt any other than the person who gave the provocation.	May arrest without warrant.	Ditto	Ditto	Compoundable when permission is given by the Court before which a prosecution is pending.	Imprison-ment of either description for 4 years, or fine of 2,000 Taka or both.	[2][Metropo-litan Magis-trate or Magis-trate of the first class.]
336.	Doing any act which endangers human life or the personal safety of others.	Ditto	Ditto	Ditto	[3][Compoun-dable when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either description for 3 months, or fine of 250 Taka or both.	[1][Any Judicial Magis-trate].
337.	Causing hurt by an act which endangers human life, etc.	Ditto	Ditto	Ditto	Compoundable when permission is given by the Court before which a prosecution is pending.	Imprison-ment of either description for 6 months, or fine of 500 Taka or both.	[1][Any Judicial Magis-trate].

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry "Compoundable when permission is given by the Court before which the prosecution is pending" was substituted for the former entry "Not Compoundable" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code.	By what Court triable.
338.	Causing grievous hurt by an act which endangers human life, etc.	May arrest without warrant.	Summons	Bailable	Compoundable when permission is given by the Court before which a prosecution is pending.	Imprisonment of either description for 2 years, or fine of [1][5,000 Taka] or both.	[2][Any Judicial Magistrate].
[3][338A	Causing grievous hurt by rash driving or riding on a public way.	Ditto	Warrant	[4][Ditto.]	Not compoundable	Imprisonment of either description for [5][2 years], or fine, or both.	[6][Metropoli-tan Magistrate or Magistrate of the first class.]]
341.	Wrongfully restraining any person.	Ditto	Summons	Ditto	Compoundable	Simple imprisonment for 1 month, or fine of 500 Taka, or both.	[2][Any Judicial Magis-trate].
342.	Wrongfully confining any person.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 1 year, or fine of 1,000 Taka, or both.	[2][Any Judicial Magis-trate].
343.	Wrongfully confining for three or more days.	Ditto	Ditto	Ditto	Compoundable when permission is given by the Court before which the prosecution is pending.	Imprisonment of either description for 2 years, or fine, or both.	Ditto.

---

1 The figure and word "5,000 Taka" were substituted for the figure and word "1,000 Taka" by section 34 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry 338A. was inserted by section 34 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

4 The word "Ditto" was substituted for the words "Not bailable" by section 2 of the Code of Criminal Procedure (Amendment) Ordinance, 1984 (Ordinance No. XXII of 1984).

5 The figure and word "2 years" were substituted for the former figure and word "5 years" by section 2 of the Code of Criminal Procedure (Amendment) Ordinance, 1985 (Ordinance No. XLIX of 1985).

6 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code.	By what Court triable.
	Of Wrongful Restraint and Wrongful Confinement						
344.	Wrongfully confining for 10 or more days.	May arrest without warrant.	Summons	Bailable	[1][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 3 years, and fine.	[2][Metro-politan Magistrate or Magistrate of the first or second class.]
345.	Keeping any person in wrongful confinement, knowing that a writ has been issued for his liberation.	Shall not arrest without warrant.	Ditto	Ditto	[3][Not compound-able.]	Imprisonment of either description for 2 years, in addition to imprisonment under any other section.	[4][Any Judicial Magistrate]
346.	Wrongful confinement in secret.	May arrest without warrant.	Ditto	Ditto	Compound-able when permission is given by the Court before which the prosecution is pending.	Ditto	Ditto
347.	Wrongful confinement for the purpose of extorting property, or constraining to an illegal act, etc.	Ditto	Ditto	Ditto	[5][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 3 years, and fine.	[2][Metro-politan Magistrate or Magistrate of the first or second class.]

---

1 The entry was substituted for the former entry by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry was substituted for the former entry by the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978), Schedule.

4 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

5 The entry was substituted for the former entry "Not compoundable" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code.	By what Court triable.
348.	Wrongful confinement for the purpose of extorting confession or information, or of compelling restoration of property, etc.	May arrest without warrant.	Summons	Bailable	[1][Compoun-dable when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 3 years, and fine.	[2][Metropoli-tan Magistrate or Magistrate of the first or second class.]
	Of Criminal Force and Assault						
352.	Assault or use of criminal force otherwise than on grave provocation.	Shall not arrest without warrant.	Summons	Bailable	Compoundable	Imprisonment of either description for 3 months, or fine of 500 Taka, or both.	[3][Any Judicial Magistrate].
353.	Assault or use of criminal force to deter a public servant from discharge of his duty.	May arrest without warrant.	Warrant.	[4][Not bailable.]	Not compoundable	Imprisonment of either description for [5][3] years, or fine, or both.	[6][Metro-politan Magistrate or Magistrate] of the first or second class.

---

1 The entry was substituted for the former entry "Not compoundable" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate of Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry was substituted for the former entry "Bailable" by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

5 The figure "3" was substituted for the figure "2" by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

6 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code.	By what Court triable.
354.	Assault or use of criminal force to a woman with intent to outrage her modesty.	Ditto	Ditto	[1][Bailable]	[2][Compoun-dable when permission is given by the Court before which the prosecution is pending.]	[3][Imprison-ment of either description for 2 years, or fine, or both.]	[4][Metropolitan Magistrate or Magistrate] of the first or second class.
355.	Assault or criminal force with intent to dishonour a person, otherwise than on grave and sudden provocation.	Shall not arrest without warrant.	Summons	Bailable	Compound-able.	Imprisonment of either description for 2 years, or fine, or both.	Ditto.
356.	Assault or criminal force in attempt to commit theft of property worn or carried by a person.	May arrest without warrant.	Warrant.	Not bailable.	[5][Compoun-dable when permission is given by the Court before which the prosecution is pending.]	Ditto	[6][Any Judicial Magistrate].
357.	Assault or use of criminal force in attempt wrongfully to confine a person.	Ditto	Ditto	Bailable	[5][Compounda-ble when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 1 year, or fine of 1,000 Taka, or both.	Ditto.
358.	Assault or use of criminal force on grave and sudden provocation.	Shall not arrest without warrant.	Summons	Bailable	Compoundable	Simple imprisonment for 1 month, or fine of 200 Taka, or both.	[6][Any Judicial Magistrate]

1 The entry "Bailable" was substituted for the former entry "Ditto" by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

2 The entry was substituted for the former entry "Not compoundable" by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

3 The entry was substituted for the former entry "Ditto" by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

4 The words "Metropolitan Magistrate or Magistrate" were substituted for the word "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

5 The entry was substituted for the former entry "Not compoundable" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

6 The words "Any Judicial Magistrate" were substituted for the words "Any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	Of Kidnapping, Abduction, Slavery and Forced Labour.						
363.	Kidnapping	May arrest without warrant.	Warrant	Bailable	Not compoun-dable	Imprisonment of either description for 7 years and fine.	[1][Metro-politan Magistrate or Magistrate of the first class.]
364.	Kidnapping or abducting in order to murder.	Ditto	Ditto	Not bailable	Ditto	*Transporta-tion for life, or rigorous imprisonment for 10 years, and fine.	Court of Session.
[2][364A	Kidnapping or abducting a person under the age of ten.	Ditto	Ditto	Ditto	Ditto	Death, *transporta-tion for life, or rigorous imprisonment for 14 years, but not less than 7 years.	Ditto.]
365.	Kidnapping or abducting with intent secretly and wrongfully to confine a person.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, and fine.	[1][Metro-politan Magistrate or Magistrate of the first class.]

[1] The entry "Metropolitan Magistrate or Magistrate of the first class" were substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] Section 364A. was inserted by section 3 of the Code of Criminal Procedure (Amendment) Ordinance, 1982 (Ordinance No. IX of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
366.	Kidnapping or abducting a woman to compel her marriage or to cause her defilement, etc.	May arrest without warrant.	Warrant	Not bailable	Not compoun-dable	Imprisonment of either description for 10 years and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
[3][366A.	Procuration of minor girl.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
366B.	Importation of girl from foreign country.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.]

[1] The entry " Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[3] Items 366A and 366B were inserted by section 4 of the Indian Penal Code (Amendment) Act, 1923 (Act No. XX of 1923).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
367.	Kidnapping or abducting in order to subject a person to grievous hurt, slavery, etc.	May arrest without warrant.	Warrant	Not bailable	Not compoun-dable	Imprisonment of either description for 10 years and fine.	Court of Session, Chief Metropolitan Magistrate, [1][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.
368.	Concealing or keeping in confinement a kidnapped person.	Ditto	Ditto	Ditto	Ditto	Punishment for kidnapping or abduction.	[2][Court of Session, Chief Metropolitan Magistrate, [1][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
369.	Kidnapping or abducting a child with intent to take property from the person of such child.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, and fine.	[3][Metropolitan Magistrate or Magistrate of the first class.]

---

[1] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[2] The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[3] The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
370.	Buying or disposing of any person as a slave.	Shall not arrest without warrant.	Warrant	Bailable	Not compoun-dable	Imprisonment of either description for 7 years and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
371.	Habitual dealing in slaves.	May arrest without warrant.	Ditto	Not bailable	Ditto	Transportation for life, or imprisonment of either description for 10 years, and fine.	[2][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
372.	Selling or letting to hire a minor for purposes of prostitution, etc.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 10 years, and fine.	[4][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
373.	Buying or obtaining possession of a minor for the same purposes.	May arrest without warrant	Warrant	Not bailable	Not compoun-dable	Imprisonment of either description for 10 years, and fine.	Court of Session, Chief Metropolitan Magistrate, [1][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.
374.	Unlawful compulsory labour.	Shall not arrest without warrant	Ditto	Bailable	Compoun-dable	Imprisonment of either description for 1 year, or fine, or both.	[2][Any Judicial Magistrate].
	Of Rape						
376.	Rape.						
	If the sexual intercourse was by a man with his own wife not being under 12 years of age.	Shall not arrest without warrant.	Summons	Bailable	Not compoun-dable	Imprisonment of either description for 2 years, or fine, or both.	[3][Chief Metropolitan Magistrate or [4][Chief Judicial Magistrate]].

[1] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate " were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[2] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[3] The entry "Chief Metropolitan Magistrate or District Magistrate" was substituted for the former entry by section 2 of the Code of Criminal Procedure (Amendment) Ordinance, 1980 (Ordinance No. IV of 1980).

[4] The words ."Chief Judicial Magistrate" were substituted for the words "District Magistrate" by section 100(b)(ii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
376. contd.	If the sexual intercourse was by a man with his own wife being under 12 years of age.	Shall not arrest without warrant.	Summons	Bailable	Not compoun-dable	*Transporta-tion for life, or imprisonment of either description for 10 years, and fine.	[1][2][Chief Metropolitan Magistrate,] [3][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
	In any other case	May arrest without warrant.	Warrant	Not bailable	Ditto	Ditto	[1][2][Chief Metropolitan Magistrate,] [3][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
			Of Unnatural Offences				
377.	Unnatural offences.	May arrest without warrant.	Warrant	Not bailable	Not Compoun-dable	*Transporta-tion for life, or imprisonment of either description for 10 years, and fine.	[1][2][Chief Metropolitan Magistrate,] [3][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]

---

1 The entry "District Magistrate or Additional District Magistrate especially empowered by the Government in that behalf" was substituted for the former entry "Court of Session, Metropolitan Magistrate" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

2 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

3 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	CHAPTER XVII.- OFFENCES AGAINST PROPERTY *(Of Theft)*						
379.	Theft	May arrest without warrant.	Warrant	Not bailable	[1][Compoun-dable when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 3 years, or fine, or both.	[2][Any Judicial Magistrate].
380.	Theft in a building, tent or vessel.	Ditto	Ditto	Ditto	[3][Compoun-dable when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 7 years, and fine.	[2][Any Judicial Magistrate].
381.	Theft by clerk or servant of property in possession of master or employer.	Ditto	Ditto	Ditto	[4][Compoun-dable when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 7 years, and fine.	[5][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The entry "Compoundable when permission is given by the Court before which the prosecution is pending" was substituted for the former entry by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "Compoundable when permission is given by the Court before which the prosecution is pending" was substituted for the former entry "Not Compoundable" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The entry "Compoundable when permission is given by the Court before which the prosecution is pending" was substituted for the former entry by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

5 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
382.	Theft, preparation having been made for causing death, or hurt, or restraint, or fear of death, or of hurt or of restraint, in order to the committing of such theft, or to retiring after committing it, or to retaining property taken by it.	May arrest without warrant	Warrant	Not bailable	Not compoun-dable	Rigorous imprisonment for 10 years, and fine.	[1][Court of Session.]
	Of Extortion						
384.	Extortion	Shall not arrest without warrant.	Warrant	Bailable	Not compoun-dable	Imprisonment of either description for 3 years, or fine, or both.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]
385.	Putting or attempting to put in fear of injury, in order to commit extortion.	[3][May arrest without warrant]	Ditto	[4][Not bailable	Ditto	Imprisonment of either description for 14 years, but not less than 5 years.	Court of Session].

---

1 The entry "Court of Session" was substituted for the former entry by section 2 of the Code of Criminal Procedure (Amendment) Act, 1980 (Act No. IV of 1980).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry "May arrest without warrant " was substituted for the former entry "Ditto" by section 9 of the Code of Criminal Procedure (Amendment) Act, 1991 (Act No. XVI of 1991).

4 The entry was substituted for column 5, 6, 7 and 8 by section 4 of the Code of Criminal Procedure (Amendment) Act, 2000 (Act No. XLI of 2000).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
386.	Extortion by putting a person in fear of death or grievous hurt.	[1][Shall not arrest without warrant.]	Warrant	Not bailable	Not compound-able	Imprisonment of either description for 10 years, and fine.	[2][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
387.	Putting or attempting to put a person in fear of death or grievous hurt in order to commit extortion.	[1][May arrest without warrant]	Ditto	Ditto	Ditto	[4][Imprisonment for life but not less than 7 years.	Court of Session.]
388.	Extortion by threat of accusation of an offence punishable with death, *transportation for life, or imprisonment for 10 years.	Shall not arrest without warrant.	Ditto	Bailable	Ditto	Imprisonment of either description for 10 years, and fine.	[5][Court of Session, Chief Metropolitan Magistrate, [3][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

---

1 The entry "Shall not arrest without warrant" was substituted for the former entry "Ditto" by section 9 of the Code of Criminal Procedure (Amendment) Act, 1991 (Act No. XVI of 1991).

2 The entry was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry was substituted for column 7 and 8 by section 4 of the Code of Criminal Procedure (Amendment) Act, 2000 (Act No. XLI of 2000).

5 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
388. contd.	If the offence threatened be an unnatural offence.	Shall not arrest without warrant	Warrant	Bailable	Not compoun-dable	*Transpor-tation for life.	[1][[2][Chief Metropolitan Magistrate,] [3][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
389.	Putting a person in fear of accusation of offence punishable with death, *transportation for life, or with imprisonment for 10 years, in order to commit extortion.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 10 years, and fine.	[4][Court of Session, Chief Metropolitan Magistrate, [5][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
	If the offence be an unnatural offence.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life.	[1][[2][Chief Metropolitan Magistrate,] [3][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]

---

[1] The entry was substituted for the former entry by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

[2] The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

[3] The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[4] The entry was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[5] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	Of Robbery and Dacoity						
392.	Robbery	May arrest without warrant	Warrant	Not bailable	Not compoun-dable	Rigorous imprison-ment for 10 years, and fine.	[1][Court of Sessions, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
	If committed on the highway between sunset and sunrise.	Ditto	Ditto	Ditto	Ditto	Rigorous imprisonment for 14 years, and fine.	[3][Court of Session.]
393.	Attempt to commit robbery.	Ditto	Ditto	Ditto	Ditto	Rigorous imprison-ment for 7 years, and fine.	[4][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The entry was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) section 100(b)(iii) (with effect from 1st November, 2007).

3 The entry "Court of Session" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
394.	Person voluntarily causing hurt in committing or attempting to commit robbery, or any other person jointly concerned in such robbery.	May arrest without warrant.	Warrant	Not bailable	Not compound-able	*Transpor-tation for life, or rigorous imprisonment for 10 years and fine.	[1][Court of Session.]
395.	Dacoity	Ditto	Ditto	Ditto	Ditto	Transportation for life, or rigorous imprisonment for 10 years and fine.	Court of Session.
396.	Murder in dacoity	Ditto	Ditto	Ditto	Ditto	Death, *transpor-tation for life, or rigorous imprisonment for 10 years, and fine.	Ditto
397.	Robbery or dacoity, with attempt to cause death or grievous hurt.	Ditto	Ditto	Ditto	Ditto	Rigorous imprisonment for not less than 7 years.	[2][Court of Session.]
398.	Attempt to commit robbery or dacoity when armed with deadly weapon.	Ditto	Ditto	Ditto	Ditto	Rigorous imprisonment for not less than 7 years	Court of Session.

[1] The entry "Court of Session" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The entry "Court of Session" was substituted for the former entry by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
399.	Making preparation to commit dacoity.	May arrest without warrant.	Warrant	Not bailable	Not compound-able	Rigorous imprison-ment for 10 years, and fine.	[1][Court of Sessions, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
400.	Belonging to a gang of persons associated for the purpose of habitually committing dacoity	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or rigorous imprison-ment for 10 years, and fine.	Court of Sessions.
401.	Belonging to a wandering gang of persons associated for the purpose of habitually committing thefts.	Ditto	Ditto	Ditto	Ditto	Rigorous imprison-ment for 7 years and fine.	[3][Metropolitan Magistrate or Magistrate of the first class.]

---

[1] The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[3] The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
402.	Being one of five or more persons assembled for the purpose of committing dacoity.	May arrest without warrant.	Warrant	Not bailable	Not compound-able	Rigorous imprison-ment for 7 years and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
	Of Criminal Misappropriation of Property						
403.	Dishonest misappropriation of movable property, or converting it to one's own use.	Shall not arrest without warrant.	Warrant	Bailable	Compound-able when permission is given by the Court before which the prosecution is pending.	Imprison-ment of either descrip-tion for 2 years, or fine, or both.	[2][Any Judicial Magistrate]
404.	Dishonest misappropriation of property, knowing that it was in possession of a deceased person at his death, and that it has not since been in the possession of any person legally entitled to it.	Ditto	Ditto	Ditto	Not compound-able.	Imprison-ment of either descrip-tion for 3 years, and fine.	[3][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 2 of the Code of Criminal Procedure (Amendment) Act, 1980 (Act No. IV of 1980).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
[1][***]	If by clerk or person employed by deceased.	Shall not arrest without warrant	Warrant	Bailable	Not compoun-dable	Imprison-ment of either descrip-tion for 7 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first class.]
	Of Criminal Breach of Trust						
406.	Criminal breach of trust.	May arrest without warrant.	Warrant.	Not bailable.	[3][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either descrip-tion for 3 years, or fine, or both.	[4][Metropolitan Magistrate or Magistrate of the first or second class.]
407.	Criminal breach of trust by a carrier, wharfinger, etc.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either descrip-tion for 7 years, and fine.	[5][Metropolitan Magistrate or Magistrate of the first class.]
408.	Criminal breach of trust by a clerk or servant.	Ditto	Ditto	Ditto	Ditto	Ditto	[6][Ditto.]

---

1 The figure 405 was repealed by the Code of Criminal Procedure (Amendment) Act, 1923 (Act No. XVIII of 1923).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry "Compoundable when permission is given by the Court before which the prosecution is pending" was substituted for the former entry "Not compoundable" by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

4 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

5 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

6 The word "Ditto" was substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
409.	Criminal breach of trust by public servant or by banker, merchant or agent, etc.	May arrest without warrant.	Warrant	Not bailable	[1][Not compoun-dable.]	*Transporta-tion for life or imprison-ment of either description for 10 years, and fine.	[2][Court of Session.]
	Of the Receiving of Stolen Property						
411.	Dishonestly receiving stolen property, knowing it to be stolen.	May arrest without warrant.	Warrant	Not bailable	[3][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either description for 3 years, or fine, or both.	[4][Metropolitan Magistrate or Magistrate of the first or second class.]
412.	Dishonestly receiving stolen property, knowing that it was obtained by dacoity.	Ditto	Ditto	Ditto	Not compound-able	*Transporta-tion for life, or rigorous imprison-ment for 10 years, and fine.	[5][6][Chief Metropolitan Magistrate,] [7][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]

---

1 The words "Not compoundable" were substituted for the words by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The entry "Court of Session" was substituted for the former entry by section 2 of the Code of Criminal Procedure (Amendment) Act, 1980 (Act No. IV of 1980).

3 The entry was substituted for the former entry "Not compoundable" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

4 The words "Metropolitan Magistrate or Magistrate of the first or second class" were substituted for the words "Metropolitan Magistrate or Magistrate of the fist class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

5 The entry was substituted for the former entry by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

6 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

7 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
413.	Habitually dealing in stolen property.	May arrest without warrant.	Warrant	Not bailable	Not compoun-dable.	*Transporta-tion for life or imprisonment of either description for 10 years, and fine.	[1][[2][Chief Metropolitan Magistrate,] [3][Chief Judicial Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
414.	Assisting in concealment or disposal of stolen property, knowing it to be stolen.	Ditto	Ditto	Ditto	[4][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either description for 3 years, or fine, or both.	[5][Metropolitan Magistrate or Magistrate of the first or second class.]
	Of Cheating						
417.	Cheating	Shall not arrest without warrant.	Warrant.	Bailable	Compound-able when permission is given by the Court before which the prosecution is pending.	Imprisonment of either description for 1 year, or fine or both.	[6][Metropolitan Magistrate or Magistrate] of the first or second class.

---

1 The entry was substituted for the former entry by section 17of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

2 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

3 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry was substituted for the former entry "Not compoundable" by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

5 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

6 The entry "Metropolitan Magistrate or Magistrate" was substituted for the former entry "Magistrate" by Schedule of the Code of Criminal Procedure (Amendment) Ordinance, 1976 (Ordinance No. LXXXVI of 1976).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
418.	Cheating a person whose interest the offender was bound, either by law or by legal contract, to protect.	Shall not arrest without warrant.	Warrant	Bailable	Compound-able when permission is given by the Court before which the prosecution is pending.	Imprison-ment of either description for 3 years, or fine, or both.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
419.	Cheating by personation.	May arrest without warrant.	Ditto	Ditto	Compound-able when permission is given by the Court before which the prosecution is pending.	Imprison-ment of either description for 3 years, or fine, or both.	[1][Metropolitan Magistrate or Magistrate of the first or second class.]
420.	Cheating and thereby dishonestly inducing delivery of property, or the making, alteration or destruction of a valuable security.	Ditto	Ditto	Ditto	Compound-able when permission is given by the Court before which the prosecution is pending.	Imprison-ment of either description for 7 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first class.]

[1] The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	Of Fraudulent Deeds and Disposition of Property						
421.	Fraudulent removal of concealment of property, etc., to prevent distribution among creditors.	Shall not arrest without warrant.	Warrant	Bailable	[1][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either description for 2 years, or fine, or both.	[2][Any Judicial Magistrate].
422.	Fraudulently preventing from being made available for his creditors a debt or demand due to the offender.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
423.	Fraudulent execution of deed of transfer containing a false statement of consideration.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
424.	Fraudulent removal or concealment of property, of himself, or any other person, or assisting in the doing thereof, or dishonestly releasing any demand or claim to which he is entitled.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.

---

1 The words "Compoundable when permission is given by the Court before which the prosecution is pending" were substituted for the words "Not compoundable" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	Of Mischief						
426.	Mischief	Shall not arrest without warrant.	Summons	Bailable	Compound-able when the only loss or damage caused is loss or damage to a private person.	Imprison-ment of either description for 3 months, or fine, or both.	[1][Any Judicial Magistrate].
427.	Mischief, and thereby causing damage to the amount of 50 Taka or upwards.	Ditto	Warrant	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate].
428.	Mischief by killing, poisoning, maiming or rendering useless any animal of the value of 10 Taka or upwards.	May arrest without warrant	Ditto	Ditto	[2][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate].
429.	Mischief by killing, poising, maiming or rendering useless any elephant, camel, horse, etc., whatever may be its value or any other animal of the value of 50 Taka or upwards.	Ditto	Ditto	Ditto	[2][Compound-able when permission is given by the Court before which the prosecution is pending.]	Imprison-ment of either description for 5 years, or fine, or both.	[3][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Compoundable when permission is given by the Court before which the prosecution is pending" was substituted for the former entry "Not compoundable" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

3 The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
430.	Mischief by causing diminution of supply of water for agricultural purposes, etc.	May arrest without warrant	Warrant	Bailable	Compound-able when permission is given by the Court before which the prosecution is pending.	Imprison-ment of either description for 5 years, or fine or both.	[1][Metropolitan Magistrate or Magistrate of the first class.]
431.	Mischief by injury to public road, bridge, navigable river, or navigable channel, and rendering it impossible or less safe for traveling or conveying property.	Ditto	Ditto	Ditto	Not compound-able	Ditto	Ditto.
432.	Mischief by causing inundation or obstruction to public drainage, attended with damage.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto
433.	Mischief by destroying or moving or rendering less useful a lighthouse or sea-mark, or by exhibiting false lights.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, or fine, or both.	[2][Metropolitan Magistrate or Magistrate of the first class.]

[1] The words "Metropolitan Magistrate or Magistrate of the first class" were substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

[2] The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code.	By what Court triable.
434.	Mischief by destroying or moving, etc., a landmark fixed by public authority.	Shall not arrest without warrant.	Warrant	Bailable	Not compound-able	Imprisonment of either description for 1 year, or fine, or both.	[1][Any Judicial Magistrate]
435.	Mischief by fire or explosive substance with intent to cause damage to amount of 100 Taka or upwards, or, incase of agricultural produce, 10 Taka or upwards.	May arrest without warrant.	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first class.]
436.	Mischief by fire or explosive substance with intent to destroy, a house, etc.	Ditto	Ditto	Not bailable.	Ditto	*Transporta-tion for life, or imprisonment of their description for 10 years, and fine.	[3][[4][Chief Metropolitan Magistrate,] [5][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry was substituted for the former entry by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

4 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

5 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
437.	Mischief with intent to destroy or make unsafe a decked vessel or a vessel of 20 tons burden.	May arrest without warrant	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 10 years, and fine.	[1][Court of Sessions, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
438.	The mischief described in the last section when committed by fire or any explosive substance.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life or imprison-ment of either description for 10 years, and fine.	[3][[4][Chief Metropolitan Magistrate,] [5][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
439.	Running vessel ashore with intent to commit theft, etc.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 10 years, and fine.	[1][Court of Sessions, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

[1] The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[3] The entry was substituted for the former entry by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

[4] The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

[5] The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
440.	Mischief committed after preparation made for causing death, or hurt, etc.	May arrest without warrant	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 5 years, and fine.	[1][Metropoli-tan Magistrate, or Magistrate of the first class.]
	Of Criminal Trespass						
447.	Criminal trespass.	May arrest without warrant.	Summons	Bailable	Compound-able.	Imprison-ment of either description for 3 months, or fine of 500 Taka, or both.	[2][Any Judicial Magistrate]
448.	House-trespass.	Ditto	Warrant	Ditto	Ditto	Imprison-ment of either description for one year, or fine of 1,000 Taka, or both.	Ditto
449.	House-trespass in order to the commi-ssion of an offence punishable with death.	Ditto	Ditto	Not bailable	Not compound-abe	*Transpor-tation for life, or rigorous imprison-ment for 10 years, and fine.	Court of Session.

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
450.	House-trespass in order to the commission of an offence punishable with *transporta-tion for life.	May arrest without warrant	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
451.	House-trespass in order to the commission of an offence punishable with imprison-ment.	Ditto	Ditto	Bailable	Compound-able when permission is given by the Court before which the prosecution is pending.	Imrpsion-ment of either description for 2 years, and fine.	[3][Any Judicial Magistrate].
	If the offence is theft.	May arrest without warrant.	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 7 years, and fine.	[4][Metropolitan Magistrate or Magistrate of the first class.]
452.	House-trespass, having made preparation for causing hurt, assault, etc.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.

---

[1] The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[3] The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[4] The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
453.	Lurking house - trespass or house-breaking.	May arrest without warrant	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 2 years, and fine.	[1][Any Judicial Magistrate]
454.	Lurking house-trespass or house-breaking in order to the commission of an offence punishable with imprisonment.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]
	If the offence is theft.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 10 years, and fine.	[3][Court of Sessions, Chief Metropolitan Magistrate, [4][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
455	Lurking house - trespass or house-breaking after preparation made for causing hurt, assault, etc.	May arrest without warrant	Warrant	Not bailable	Not compound-able	Imprisonment of either description for 10 years, and fine.	[1][Court of Session, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
456.	Lurking house-trespass or house-breaking by night.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 3 years, and fine.	[3][Metropolitan Magistrate or Magistrate of the first or second class.]
457.	Lurking house-trespass or house-breaking by night in order to the commission of an offence punishable with imprisonment.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 5 years, and fine.	[4][Metropolitan Magistrate or Magistrate of the first class.]
	If the offence is theft.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 14 years, and fine.	Ditto.

---

[1] The entry "Court of Session, Chief Metropolitan Magistrate, District Magistrate, Additional District Magistrate or Magistrate of the first class specially empowered by the Government in that behalf" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[2] The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[3] The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

[4] The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
458.	Lurking house-trespass or house-breaking by night, after preparation for causing hurt, etc.	May arrest without warrant	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 14 years, and fine.	[1][Court of Session.]
459.	Grievous hurt caused whilst committing lurking house-trespass or house-breaking.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or imprison-ment of either description for ten years, and fine.	[2][[3][Chief Metropolitan Magistrate,] [4][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
460.	Death or grievous hurt caused by one of several persons jointly concerned in house-breaking by night, etc.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or imprison-ment of either description for 10 years, and fine.	Court of Sessions.

---

1 The entry "Court of Session" was substituted for the former entry by section 2 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. IV of 1980).

2 The entry was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

3 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

4 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
461.	Dishonestly breaking open or unfastening any closed receptacle containing or supposed to contain property.	May arrest without warrant	Warrant	Bailable	Not compound-able	Imprison-ment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate].
462.	Being entrusted with any close receptacle containing or supposed to contain any property and fraudulently opening the same.	Ditto	Ditto	Bailable	Ditto	Imprison-ment of either description for 3 years, or fine, or both.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]
[3][462A.	Negligent conduct of bank officers and employees.	Ditto	Ditto	Ditto	Ditto	Imprison-ment for two years or fine or both.	Ditto.
462B.	Defrauding banking company.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 Sections 462A and 462B were inserted by section 9 of the Code of Criminal Procedure (Amendment) Act, 1991 (Act No. XVI of 1991).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	CHAPTER XVIII.- OFFENCES RELATING TO DOCUMENTS AND TO TRADE OR PROPERTY MARKS						
465.	Forgery	Shall not arrest without warrant.	Warrant	Bailable	Not compound-able	Imprisonment of either description for 2 years, or fine, or both.	[1][Any Judicial Magistrate].
466.	Forgery of a record of a Court of Justice or of a Register of Births, etc., kept by a public servant.	Ditto	Ditto	Not bailable	Ditto	Imprisonment of either description for 7 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first class.]
467.	Forgery of a valuable security, will, or authority to make or transfer any valuable security, or to receive any money, etc.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or imprison-ment of either description for 10 years, and fine.	[3][[4][Chief Metropolitan Magistrate,] [5][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
	When the valuable-	May-	Ditto	Ditto	Ditto	Ditto	Ditto.

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

3 The entry was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

4 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

5 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	security is a promissory note of the Government.	arrest without warrant.					
468.	Forgery for the purpose of cheating.	Shall not arrest without warrant.	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
469.	Forgery for the purpose of harming the reputation of any person, or knowing that it is likely to be used for that purpose.	Ditto	Ditto	Bailable	Ditto	Imprison-ment of either description for 3 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]
471.	Using as genuine a forged document which is known to be forged.	Ditto	Ditto	Ditto	Ditto	Punishment for forgery of such document.	Same Court as that by which the forgery is triable.
	When the forged document is a promissory note of the Government.	May arrest without warrant.	Ditto	Ditto	Ditto	Ditto	Court of Sessions.

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
472.	Making or counterfeiting a seal, plate, etc., with intent to commit a forgery punishable under section 467 of the Penal Code or possessing with like intent any such seal, plate, etc., knowing the same to be counterfeit.	Shall not arrest without warrant.	Warrant	Bailable	Not compound-able	*Transpor-tation for life, or imprison-ment of either description for 7 years, and fine.	[1][2][Chief Metropolitan Magistrate,] [3][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
473.	Making or counterfeiting a seal, plate, etc., with intent to commit a forgery punishable otherwise than under section 467 of the Penal Code, or possessing with like intent any such seal, plate, etc., knowing the same to be counterfeit.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 7 years, and fine.	[4][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The entry was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

2 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

3 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

4 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
474.	Having possession of a document, knowing it to be forged, with intent to use it as genuine; if the document is one of the description mentioned in section 466 of the Penal Code.	Shall not arrest without warrant.	Warrant	Bailable	Not compound-able	Imprison-ment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
	If the document is one of the description mentioned in section 467 of the Penal Code.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or imprison-ment of either description for 7 years, and fine.	[2][[3][Chief Metropolitan Magistrate,] [4][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
475.	Counterfeiting a device or mark used for authenticating documents described in section 467 of the Penal Code, or possessing counterfeit marked material.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or imprison-ment of either description for 7 years, and fine.	[2][[3][Chief Metropolitan Magistrate,] [4][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

3 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

4 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
476.	Counterfeiting a device or mark used for authenticating documents other than those described in section 467 of the Penal Code, or possessing counterfeit marked material.	Shall not arrest without warrant.	Warrant	Not bailable	Not compound-able	Imprison-ment of either description for 7 years, and fine.	[1][Metropolitan Magistrate or Magistrate of the first class.]
477.	Fraudulently destroying or defacing, or attempting to destroy or deface, or secreting, a will, etc.	Ditto	Ditto	Ditto	Ditto	*Transpor-tation for life, or imprison-ment of either description for 7 years, and fine.	[2][[3][Chief Metropolitan Magistrate,] [4][Chief Judicial Magistrate or Additional Chief Judicial Magistrate] specially empowered by the Government in that behalf.]
477A.	Falsification of accounts.	Ditto	Ditto	Bailable.	Ditto	Imprison-ment of either description for 7 years, or fine, or both.	[1][Metropolitan Magistrate or Magistrate of the first class.]

---

1 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The entry was substituted for the former entry "Court of Session" by section 17 of the Code of Criminal Procedure (Third Amendment) Ordinance, 1982 (Ordinance No. LX of 1982).

3 The words and comma "Chief Metropolitan Magistrate," were inserted by section 5 of the Code of Criminal Procedure (Amendment) Ordinance, 1983 (Ordinance No. IV of 1983).

4 The words "Chief Judicial Magistrate or Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate or Additional District Magistrate" by section 100(b)(iv) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	Of Trade and Property Marks						
482.	Using a false trade or property mark with intent to deceive or injure any person.	Shall not arrest without warrant.	Warrant	Bailable	Compoundable when permission is given by the Court before which the prosecution is pending.	Imprison-ment of either description for 1 year, or fine, or both.	[1][Any Judicial Magistrate].
483.	Counterfeiting a trade or property mark used by another, with intent to cause damage or injury.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, or fine, or both.	Ditto.
484.	Counterfeiting a property mark used by a public servant, or any mark used by him to denote the manufacture, quality, etc., of any property.	Ditto	Summons	Ditto	Not compound-able	Imprison-ment of either description for 3 years, and fine.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]
485.	Fraudulently making or having possession of any die, plate or other instrument for counterfeiting any public or private property or trademark.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 3 years, or fine or both.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
486.	Knowingly selling goods marked with a counterfeit property or trade mark.	Shall not arrest without warrant.	Summons	Bailable	Compound-able when permission is given by the Court before which the prosecution is pending.	Imprison-ment of either description for 1 year, or fine, or both.	[1][Any Judicial Magistrate].
487.	Fraudulently making a false make upon any package or receptacle containing goods, with intent to cause it to be believed that it contains goods which it does not contain, etc.	Ditto	Ditto	Ditto	Not compound-able	Imprison-ment of either description for 3 years, or fine or both.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]
488.	Making use of any such false mark.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 3 years, or fine, or both.	[2][Metropolitan Magistrate or Magistrate of the first or second class.]
489.	Removing, destroying or defacing any property mark with intent to cause injury.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 1 year, or fine, or both.	[1][Any Judicial Magistrate].

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Metropolitan Magistrate or Magistrate of the first or second class" was substituted for the former entry "Metropolitan Magistrate or Magistrate of the first class" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	[1][*Of Currency - Notes and Bank- Notes*]						
489A.	Counterfeiting currency-notes or bank-notes.	May arrest without warrant.	Warrant	Not bailable.	Not compound-able	*Transpor-tation for life, or imprison-ment of either description for 10 years, and fine.	Court of Session.
489B.	Using as genuine forged or counterfeit currency-notes or bank-notes.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
489C.	Possession of forged or counterfeit currency-notes or bank-notes.	Ditto	Ditto	Bailable	Ditto	Imprison-ment of either description for 7 years, or fine, or both.	[2][Metropolitan Magistrate or Magistrate of the first class.]
489D.	Making or possessing instruments or materials for forging or counterfeiting currency-notes or bank-notes.	May arrest without warrant.	Warrant	Not bailable	Not compound-able	Transporta-tion for life or imprison-ment of either description for 10 years, and fine.	Court of Session.

---

1 Inserted by the Currency Notes Forgery Act, 1899 (Act No. XII of 1899).

2 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry "Ditto" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoundable or not.	Punishment under the Penal Code.	By what Court triable.
	CHAPTER XIX.- CRIMINAL BREACH OF CONTRACTS OF SERVICE						
[1][***	***	***	***	***	***	***	***]
491.	Being bound to attend on or supply the wants of a person who is helpless from youth, unsoundness of mind or disease, and voluntarily omitting to do so.	Shall not arrest without warrant.	Summons	Bailable	Compoundable.	Imprisonment of either description for 3 months, or fine of 200 Taka, or both.	[2][Any Judicial Magistrate].
[1][***	***	***	***	***	***	***	***]
	CHAPTER XX.—OFFENCES RELATING TO MARRIAGE						
493.	A man by deceit causing a woman not lawfully married to him to believe that she is lawfully married to him and to cohabit with him in that belief.	Shall not arrest without warrant.	Warrant	Not bailable	[3][Compoundable when permission is given by the Court before which the prosecution is pending.]	Imrprisonment of either description for 10 years, and fine.	[4][Court of Sessions, Chief Metropolitan Magistrate, [5][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
494.	Marrying again during the lifetime of a husband or wife.	Shall not arrest without warrant.	Warrant	Bailable	[3][Compoundable when permission is given by the Court before which the prosecution is pending.]	Imprisonment of either description for 7 years, and fine.	[6][Metropolitan Magistrate or Magistrate of the first class.]

---

1 Entries relating to sections 490 and 492 were repealed by section 2 and 2nd Schedule of the Federal Laws (Revision and Declaration) Act, 1951 (Act No. XXVI of 1951).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry was substituted for the former entry "Not compoundable" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

5 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

6 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section.	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
495.	Same offence with concealment of the former marriage from the person with whom subsequent marriage is contracted.	Shall not arrest without warrant.	Warrant	Bailable	Not compound-able.	Imprisonment of either description for 10 years, and fine.	[1][Court of Sessions, Chief Metropolitan Magistrate, [2][Chief Judicial Magistrate, Additional Chief Judicial Magistrate] or Magistrate of the first class specially empowered by the Government in that behalf.]
496.	A person with fraudulent intention going through the ceremony of being married, knowing that he is not thereby lawfully married.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 7 years, and fine.	[3][Metropolitan Magistrate or Magistrate of the first class.]
497.	Adultery	Shall not arrest without warrant.	Warrant	Bailable	Compound-able	Imprisonment of either description for 5 years, or fine, or both.	[4][Metropolitan Magistrate or Magistrate of the first class.]
498.	Enticing or taking away or detaining with a criminal intent a married woman.	Ditto	Ditto	Ditto	Ditto	Imprisonment of either description for 2 years, or fine, or both.	[5] [Any Judicial Magistrate].

---

1 The entry was substituted for the former entry "Court of Session" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

2 The words "Chief Judicial Magistrate, Additional Chief Judicial Magistrate" were substituted for the words "District Magistrate, Additional District Magistrate" by section 100(b)(iii) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The words "Metropolitan Magistrate or Magistrate of the first class" was substituted for the words "Court of Session" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

5 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
	CHAPTER XXI.- DEFAMATION						
500.	Defamation	Shall not arrest without warrant.	[1][Summons]	Bailable	Compound-able.	Simple imprison-ment for 2 years, or fine, or both.	[2][Any Judicial Magistrate].
501.	Printing or engraving matter knowing it to be defamatory.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
502.	Sale of printed or engraved substance containing defamatory matter, knowing it to contain such matter.	Ditto	Ditto	Ditto	Ditto	Ditto	Ditto.
	CHAPTER XXII.—CRIMINAL INTIMIDATION, INSULT [3][PREJUDICIAL ACT AND ANNOYANCE]						
504.	Insult intended to provoke a breach of the peace.	Shall not arrest without warrant.	Warrant	Bailable	Compound-able	Imprison-ment of either description for 2 years, or fine, or both.	[2][Any Judicial Magistrate].
505.	False statement, rumour, etc., circulated with intent to cause mutiny or offence against the public peace.	Ditto	Ditto	Not bailable	Not compound-able	[4][Imprison-ment for 7 years, or fine, or both.]	[5][Court of Session.]

---

1 The entry "Summons" was substituted for the former entry "Warrant" by section 2 of the Code of Criminal Procedure (Amendment) Act, 2011 (Act No.I of 2011).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "PREJUDICIAL ACT AND ANNOYANCE" was substituted for the former entry "AND ANNOYANCE" by section 9 of the Code of Criminal Procedure (Amendment) Act, 1991 (Act No. XVI of 1991).

4 The entry "Imprisonment for 7 years, or fine, or both" was substituted for the former entry "Ditto" by section 9 of the Code of Criminal Procedure (Amendment) Act, 1991 (Act No. XVI of 1991).

5 The entry "Court of Session" was substituted for the former entry "Any Magistrate" by section 9 of the Code of Criminal Procedure (Amendment) Act, 1991 (Act No. XVI of 1991).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
[1][505A	Prejudicial Act by words, etc.	Shall not arrest without warrant.	Warrant	Not bailable	Not compound-able	Imprison-ment for 7 years, or fine or both.	Court of Sessions.]
506.	Criminal intimidation.	Ditto	Ditto	Bailable	Compound-able	Ditto	[2][Any Judicial Magistrate].
	If threat be to cause death or grievous hurt, etc.	Ditto	Ditto	Ditto	Not compound-able	Imprison-ment of either description for 7 years, or fine, or both.	[3][Metropolitan Magistrate or Magistrate of the first class.]
507.	Criminal intimidation by anonymous communication or having taken precaution to conceal whence the threat comes.	Ditto	Ditto	Ditto	Ditto	Imprison-ment of either description for 2 years, in addition to the punishment under above section.	[2][Any Judicial Magistrate].
508.	Act caused by inducing a person to believe that he will be rendered an object of Divine displeasure.	Ditto	Ditto	Ditto	Compound-able	Imprison-ment of either description for 1 year, or fine, or both.	[2][Any Judicial Magistrate].

---

1 Section 505A in column 1 and entries relating there to in column 2, 3, 4, 5, 7 and 8 were inserted by section 9 of the Code of Criminal Procedure (Amendment) Act, 1991 (Act No. XVI of 1991).

2 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

3 The entry "Metropolitan Magistrate or Magistrate of the first class" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punishment under the Penal Code.	By what Court triable.
509.	Uttering any word or making any gesture intended to insult the modesty of a woman, etc.	Shall not arrest without warrant.	Warrant	Bailable	Compound-able when permission is given by the Court before which the prosecution is pending.	Simple imprison-ment for 1 year, or fine, or both.	[1][Any Judicial Magistrate]
510.	Appearing in a public place, etc., in a state of intoxication, and causing annoyance to any person.	Ditto	Ditto	Ditto	Not compound-able	Simple imprison-ment for 24 hours, or fine of 10 Taka, or both.	[1][Any Judicial Magistrate]
	CHAPTER XXIII.– ATTEMPTS TO COMMIT OFFENCES						
511.	Attempting to commit offences punishable with *transportation or imprisonment, and in such attempt doing any act towards the commission of the offence.	According as the offence is one in respect of which the police may arrest without warrant or not.	According as the offence is one in respect of which a summons or warrant shall ordinarily issue.	According as the offence contemplated by the offender is bailable or not.	[2][Com-poundable when permission is given by the Court before which the prosecution is pending.]	*Transpor-tation or imprison-ment not exceeding half of the longest term, and of any description, provided for the offence, or fine, or both.	The Court by which the offence attempted is triable.

---

1 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

2 The entry "Compoundable when permission is given by the Court before which the prosecution is pending" was substituted for the former entry by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

* The words "Transportation for life" construed as a reference to "imprisonment for life" by section 3 of the Penal Code (Amendment) Ordinance, 1985 (Ordinance No. XLI of 1985).

[1][OFFENCES AGAINST OTHER LAWS]

1	2	3	4	5	6	7	8
Section	Offence.	Whether the police may arrest without warrant or not.	Whether a warrant or a summons shall ordinarily issue in the first instance.	Whether bailable or not.	Whether compoun-dable or not.	Punish-ment under the Penal Code.	By what Court triable.
	If punishable with death, transportation or imprisonment for [2][more] than [3][five years.]	May arrest without warrant.	Warrant	Not bailable.	Not compound-able.	--	Court of Session.
	If punishable with imprisonment for not less than two years and not more than [3][five years].	Ditto	Ditto	Ditto ... Except in cases under the Arms Act, 1878, section 19, which shall be bailable.	Ditto	--	[4][Metropolitan Magistrate or Magistrate of the first class or second class.]
	If punishable with imprisonment for [5][less] than two years or with fine only.	Shall not arrest without warrant.	Summons	Bailable	Ditto	--	[6][Any Judicial Magistrate].

---

1 The entry "OFFENCES AGAINST OTHER LAWS" was substituted for the former entry by Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The word "more" was substituted for the former words "not less" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

3 The words "five years" were substituted for the former words "three years" by section 34 of the Code of Criminal Procedure (Second Amendment) Ordinance, 1982 (Ordinance No. XXIV of 1982).

4 The entry "Metropolitan Magistrate or Magistrate of the first class or second class" was substituted for the former entry by section 2 of the Code of Criminal Procedure (Amendment) Act, 1980 (Act No. IV of 1980).

5 The word "less" was substituted for the former words "not more" by section 6 of the Code of Criminal Procedure (Second Amendment) Act, 1980 (Act No. XXX of 1980).

6 The words "Any Judicial Magistrate" were substituted for the words "any Magistrate" by section 100(b)(i) of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

[1][SCHEDULE III

(See section 36)

ORDINARY POWERS OF MAGISTRATES

I. Ordinary Powers of a Magistrate of the Third Class

(1) Power to arrest or direct the arrest of and to commit to custody, a person committing an offence in his presence, section 64.

(2) Power to arrest, or direct the arrest in his presence of, an offender, section 65.

(3) Power to issue proclamations in cases judicially before him, section 87.

(4) Power to attach and sell property and to dispose of claims to attached property in cases judicially before him, section 88.

(5) Power to restore attached property section 89.

(6) Power to issue search warrant section 96.

(7) Power to endorse a search warrant and order delivery of thing found section 99.

(8) Power to direct search, in his presence of any place for the search of which he can issue search warrant, section 105.

(9) Power to authorize detention not being detention in the custody of the police of a person during a police investigation section 167.

(10) Power to postpone issue of process and inquiry into case himself section 202.

(11) Power to detain an offender found in Court section 351.

(12) Power to apply to Chief Judicial Magistrate to issue commission for examination of witness, section 506 (2).

(13) Power to recover forfeited bond for appearance before Magistrate's Court, section 514 and to require fresh security, section 514A.

---

1 "SCHEDULE III" was substituted by section 101 of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

(14) Power to make order as to custody and disposal of property pending inquiry on trial section 516A.

(15) Power to make order as to disposal of property section 517.

(16) Power to sell property of a suspected charater, section 525.

(17) Power to require affidavit in support of application, section 539A.

(18) Power to make local inspection, section 539B.

II. Ordinary Powers of a Magistrate of the Second Class.

(1) The ordinary powers of a Magistrate of the third class.

(2) Power to order the police to investigate an offence in cases in which the Magistrate has jurisdiction to try or send for trial section 155.

III. Ordinary powers of a Magistrate of the First Class.

(1) The ordinary Powers of a Magistrate of the second Class.

(2) Power to direct warrent to landholder, farmer etc. section 78.

(3) Power to issue search warrent otherwise than in course of an inquiry section 98.

(4) Power to issue search warrent for discovery of persons wrongfully confined section 100.

(5) Power to discharge sureties section 126.

(6) Power to record statements and confessions during a police investigation section 164.

(7) Power to issue summons or warrants for offences committed beyond local jurisdiction section 186.

(8) Power to send for trial section 205C.

(9) Power to stop proceedings when no complainant section 249.

(10) Power to tender pardon to accomplice during inquiry into case by himself section 337.

(11) Power to take evidence commission section 503.

(12) Power to recover penalty on forfeited bond section 514 and power to require fresh secondly section 514A.

(13) Power to compel restoration of abducted female, section 552.

(14) Power to take cognizance of the offence of rape of a wife by the husband and to send him for trial section 561.

(15) Power to order released convicts to notify residence, section 565.

IV. Ordinary Powers of Chief Judicial Magistrate.

(1) The Ordinary powers of Magistrate of the first Class.

(2) Power to define local areas within which Judicial Magistrate may exercise his powers, section 11(2).

(3) Power to require delivery of letters, telegrams etc., section 95(1).

(4) Power to issue search warrant for documents in custody of postal or telegraph authority section 96 (2).

(5) Power to entertain complaints section 190.

(6) Power to receive police reports section 190.

(7) Power to entertain cases without complaint section 190.

(8) Power to transfer cases to a Subordinate Magistrate, section 192.

(9) Power to order preliminary inquiry by police officers not below the rank of Inspector in certain cases section 196B.

(10) Power to try summarily section 260.

(11) Power to pass sentence on proceedings recorded by a Subordinate Magistrate section 349.

(12) Power to order inquiry into complain dismissed or case of accused discharged, section 436.

(13) Power to issue commission for examination of witness, section 503-506.

(14) Power to revise orders passed under section 514, section 515.

(15) Power to sell property alleged or suspected to have been stolen, etc. section 524.

(16) Power to withdraw cases other than appeals, and to try or refer them for trial section 528.

V. Ordinary Powers of an Executive Magistrate.

(1) Power to arrest, or to direct the arrest of and to commit to custody, a person committing an offence in presence of the Magistrate, section 64.

(2) Power to arrest, or direct the arrest in his presence of a person for whose arrest he can issue warrant, section 65.

(3) Power to endorse a warrant or to order the removal of an accused person arrested under a warrant section 83, 84, 86.

(4) Power to cause search by postal and telegraph authority for documents etc. and to detain them, Section 95 (2).

(5) Power to issue search-warrant for discovery of persons wrongfully confined, Section 100.

(6) Power to direct search, in his presence of any place for the search of which he can issue search-warrant. Section 105.

(7) Power to require security to keep peace. Section 107.

(8) Power to require security for good behaviour from vagrants and suspected persons. Section 109.

(9) Power to require security for good behaviour. Section 110.

(10) Power to discharge sureties. Section 126.

(11) Power to command unlawful assembly to disperse. Section 127.

(12) Power to use civil force to disperse unlawful assembly; Section 128.

(13) Power to require military force to be used to disperse unlawful assembly, Section 130.

(14) Power to make orders as to local nuisance, section 133.

(15) Power to issue injunction as immediate measure, in case of public nuisance, section 142.

VI. Ordinary Powers of District Magistrate

(1) The ordinary powers of an Executive Magistrate.

(2) Power to define local areas within which an Executive Magistrate may exercise his powers, section 10 (4).

(3) Power to require delivery of letters, telegrams etc. section 95 (1).

(4) Power to issue search-warrant for documents in custody of postal or telegraph authority, section 96.

(5) Power to require security for good behaviour in case of sedition etc. section 108.

(6) Power to discharge persons bound to keep peace or to be of good behaviour, section 124.

(7) Power to cancel bond for keeping peace, section 125.

(8) Power to order a person not to repeat or continue public nuisance. section 143.

(9) Power to issue order in urgent cases of nuisance or apprehended dangers. section 144.

(10) Power to make orders etc. in possession cases sections 145, 146, 147.

(11) Power to depute an Executive Magistrate to make local inquiry section 148.

(12) Power to hold inquests section 174.

(13) Power to order preliminary inquiry by police officers not below the rank of Sub-Inspector in certain cases, section 196B.

(14) Power to appoint a person to be Public Prosecutor in a particular case, section 492 (2).

(15) Power to issue commission for examination of witness, section 503-506.

(16) Power to revise orders passed under section 514, section 515.

(17) Power to deal with and dispose of certain properties section 518.

(18) Power to withdraw and recall cases, section 528 (2).

(19) Power to compel restoration of abducted female, section 552.]

[1][SCHEDULE IV

(see sections 37 *and* 38*)*

ADDITIONAL POWERS WITH WHICH MAGISTRATES MAY BE INVESTED

I. A Magistrate of the first class may be invested by the Government-

(a) Power to try offence not punishable with death or imprisonment for life or with imprisonment for a term not exceeding ten years section 29C;

(b) Power to try summarily section 260.

II. A Magistrate of the first class by the Chief Judicial Magistrate-

(a) Power to transfer cases. section 192;

(b) Power to pass sentence in proceeding recorded by a Magistrate of the second or third class section 349.

III. A Magistrate of the second class by the Government-

(a) Power to record statements and confession during a police investigation, section 164;

(b) Power to authorize detention of a person in the custody of the police during police investigation, section 167;

(c) Power to take cognizance of offences, section 190.

IV. A Magistrate of the second class by the Chief Judicial Magistrate- Power to take cognizance of offences, section 190 (2).

V. A Magistrate of the third class by Government or Chief Judicial Magistrate- Power to take cognizance of offences, section 190 sub-section (1) clause (a) (b).

VI. An Executive Magistrate by the Government-

(a) Power to issue search-warrant otherwise than in course of inquiry, section 98;

(b) Power to require security for good behaviour in case of seditions, section 108;

(c) Power to make orders prohibiting repetition of nuisance, section 143;

(d) Power to make orders under sections 144, 145 and 147;

(e) Power to held inquests, section 174.

VII. An Executive Magistrate by the District Magistrate -

(a) Power to make orders prohibiting repetition of nuisance, section 143;

(b) Power to hold inquests, section 174.]

---

[1] "SCHEDULE IV" was substituted by section 102 of the Code of Criminal Procedure (Amendment) Act, 2009 (Act No. XXXII of 2009) (with effect from 1st November, 2007).

SCHEDULE V

(See sections 555*)*

FORMS

I.–SUMMONS TO AN ACCUSED PERSON

(See section 68)

To of .

WHEREAS your attendance is necessary to answer to a charge of (*state shortly the offence charged*), you are hereby required to appear in person (*or* by pleader, *as the case may be*) before the (*Magistrate*) of , on the day of . Herein fail not.

Dated this day of , 18 .

(*Seal*) (Signature)

II.– WARRANT OF ARREST

(See section 75)

To (*name and designation of the person or persons who is or are to execute the warrant*).

WHEREAS of stands charged with the offence of (*state the offence*), you are hereby directed to arrest the said and to produce him before me. Herein fail not.

Dated this day of , 18 .

(*Seal*) (Signature)

(See section 76)

This warrant may be endorsed as follows:–

If the said shall give bail himself in the sum of , with one surety in the sum of (*or* two sureties each in the sum of) to attend before me on the day of and to continue so to attend until otherwise directed by me, he may be released.

Dated this day of , 18 .

(Signature)

III.– BOND AND BAIL-BOND AFTER ARREST UNDER A WARRANT

(See section 86)

I, (*name*), of being brought before the District Magistrate of (*or as the case may be*) under a warrant issued to compel my appearance to answer to the charge of , do hereby bind myself to attend in the Court of on the day of next, to answer to the said charge, and to continue so to attend until otherwise directed by the Court ; and, in case of my making default herein, I bind myself to forfeit, to Government the sum of Taka .

Dated this day of , 18 .

(Signature)

I do hereby declare myself surety for the above-named of

, that he shall attend before

in the Court of on the

day of next, to answer to the charge on which he has been arrested, and shall continue so to attend until otherwise directed by the Court ; and, in case of his making default therein, I bind myself to forfeit to Government the sum of Taka .

Dated this day of , 18 .

(Signature)

IV.– PROCLAMATION REQUIRING THE APPEARANCE OF A PERSON ACCUSED

(See section 87*)*

WHEREAS complaint has been made before me that (*name, description and address*) has committed (*or* is suspected to have committed) the offence of, punishable under section of the Penal Code, and it has been returned to a warrant of arrest thereupon issued that the said (*name*) cannot be found, and whereas it has been shown to my satisfaction that the said (*name*) has absconded (or is concealing himself to avoid the service of the said warrant);

Proclamation is hereby made that the said of is required to appear at (*place*) before this Court (*or* before me) to answer the said complaint on the day of .

Dated this day of , 18 .

(*Seal*) (*Signature*)

V.– PROCLAMATION REQUIRING THE ATTENDANCE OF A WITNESS

(See section 87*)*

WHEREAS complaint has been made before me that (*name, description and address*) has committed (or is suspected to have committed) the offence of (*mention the offence concisely*) and a warrant has been issued to compel the attendance of (*name, description and address of the witness*) before this Court to be examined touching the matter of the said complaint ; and whereas it has been returned to the said warrant that the said (*name of witness*) cannot be served, and it has been shown to my satisfaction that he has absconded (or is concealing himself to avoid the service of the said warrant);

Proclamation is hereby made that the said (*name*) is required to appear at (*place*) before this Court of on the day of next at o'clock to be examined touching , the offence complained of.

Dated this day of , 18 .

(*Seal*) (*Signature*)

VI.– ORDER OF ATTACHMENT TO COMPEL THE ATTENDANCE OF A WITNESS.
(See section 88*)*

To the Police-Officer in charge of the Police-station at .

WHEREAS a warrant has been duly issued to compel the attendance of (*name, description and address*) to testify concerning a complaint pending before this Court, and it has been returned to the said warrant that it cannot be served ; and whereas it has been shown to my satisfaction that he has absconded (*or* is concealing himself to avoid the service of the said warrant); and thereupon a Proclamation has been or is being duly issued and published requiring the said to appear and give evidence at the time and place mentioned therein.

This is to authorize and require you to attach by seizure the movable property belonging to the said to the value of Taka which you may find within the District of and to hold the said property under attachment pending the further order of this Court, and to return this warrant with an endorsement certifying the manner of its execution.

Dated this day of , 18 .

(*Seal*) (*Signature*)

ORDER OF ATTACHMENT TO COMPEL THE APPEARANCE OF A PERSON ACCUSED.
(See section 88)

To (*name and designation of the person or persons who is or are to execute the warrant*).

WHEREAS complaint has been made before me that (*name, description and address*) has committed (or is suspected to have committed) the offence of punishable under section of the Penal Code, and it has been returned to a warrant of arrest thereupon issued that the said (name) cannot be found ; and whereas it has been shown to my satisfaction that the said (*name*) has absconded (or is concealing himself to avoid the service of the said warrant), and thereupon a Proclamation has been or is being duly issued and published requiring the said to appear to answer the said charge within days; and whereas the said is possessed of the following property other than land paying revenue to Government in the village (*or* town) of , in the District of , viz., , and an order has been made for the attachment thereof;

You are hereby required to attach the said property by seizure, and to hold the same under attachment pending the further order of this Court, and to return this warrant with an endorsement certifying the manner of its execution.

Dated this day of , 18 .

(*Seal*) (*Signature*)

ORDER AUTHORIZING AN ATTACHMENT BY THE DEPUTY COMMISSIONER AS COLLECTOR.

(See section 88)

To the Deputy Commissioner of the District of .

WHEREAS complaint has been made before me that (*name, description and address*) has committed (*or* is suspected to have committed) the offence of , punishable under section of the Penal Code, and it has been returned to a warrant of arrest thereupon issued that the said (*name*) cannot be found; and whereas it has been shown to my satisfaction that the said (*name*) has absconded (*or* is concealing himself to avoid the service of the said warrant) and thereupon a Proclamation has been or is being duly issued and published requiring the said to appear to answer the said charge within days, ; and whereas the said is possessed of certain land paying revenue to Government in the village (*or* town) of in the District of ;

You are hereby authorized and requested to cause the said land to be attached, and to be held under attachment pending the further order of this Court, and to certify without delay what you may have done in pursuance of this order.

Dated this day of , 18 .

(*Seal*) (*Signature*)

VII.– WARRANT IN THE FIRST INSTANCE TO BRING UP A WITNESS

(See section 90*)*

To (*name and designation of the Police-officer or other person or persons who is or are to execute the warrant*).

WHEREAS complaint has been made before me that of has (or is suspected to have) committed the offence of (*mention the offence concisely*), and it appears likely that (*name and description of witness*) can give evidence concerning the said complaint; and whereas I have good and sufficient reason to believe that he will not attend as a witness on the hearing of the said complaint unless compelled to do so;

This is to authorise and require you to arrest the said (*name*), and on the day of to bring him before this Court, to be examined touching the offence complained of.

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

VIII.– WARRANT TO SEARCH AFTER INFORMATION OF A PARTICULAR OFFENCE

(See section 96*)*

To (*name and designation of the Police officer or other person or persons who is or are to execute the warrant*).

WHEREAS information has been laid (*or* complaint has been made) before me of the commission (*or* suspected commission) of the offence of (*mention the offence concisely*), and it has been made to appear to me that the production of (*specify the thing clearly*) is essential to the inquiry now being made (*or* about to be made) into the said offence (*or* suspected offence);

This is to authorize and require you to search for the said (*the thing specified*) in the (*describe the house or place or a part thereof to which the search is to be confined*) and, if found, to produce the same forthwith before this Court, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Given under my hand and the seal of the Court, this day of , 18 .

(*Seal*) (*Signature*)

IX.–WARRANT TO SEARCH SUSPECTED PLACE OF DEPOSIT

(See section 98*)*

To (*name and designation of a Police-officer above the rank of a Constable).*

WHEREAS information has been laid before me, and on due inquiry thereupon had I have been led to believe that the (*describe the house or other place)* is used as a place for the deposit (*or sale*) of stolen property (*or if for either of the other purposes expressed in the section, state the purpose in the words of the section)*;

This is to authorize and require you to enter the said house (*or other place*) with such assistance as shall be required, and to use, if necessary, reasonable force for that purpose, and to search every part of the said house (*or other place, or if the search is to be confined to a part, specify the part clearly*) and to seize and take possession of any property (or documents, or stamps, or seals, *or* coins, or obscene objects, *as the case may be*)–[Add (*when the case requires it*) and also of any instruments and materials which you may reasonably believe to be kept for the manufacture of forged documents, or counterfeit stamps, or false seals, or counterfeit coin (*as the case may be*)], and forthwith to bring before this Court such of the said things as may be taken possession of, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Given under my hand and the seal of the Court, this day of , 18 .

(*Seal*) (*Signature*)

X.–BOND TO KEEP THE PEACE
(See section 107*)*

WHEREAS I, (*name*) inhabitant of (*place*), have been called upon to enter into a bond to keep the peace for the term of or until the completion of the inquiry in the matter of now pending in the Court of , I hereby bind myself not to commit a breach of the peace, or do any act that may probably occasion a breach of the peace, during the said term or until the completion of the said inquiry; and, in case of my making default therein, I hereby bind myself to forfeit to Government, the sum of Taka .

Dated this day of , 18 .

(*Signature*)

XI.–BOND FOR GOOD BEHAVIOUR
(See section 108, 109 and 110*)*

WHEREAS I, (*name*) inhabitant of (*place*), have been called upon to enter into a bond to be of good behaviour to Government and to all the citizens of Bangladesh for the term of (*state the period*) or until the completion of the inquiry in the matter of now pending in the Court of , I hereby bind myself to be of good behaviour to Government and to all the citizens of Bangladesh during the said term or until the completion of the said inquiry; and, in case of my making default therein, I bind myself to forfeit to Government the sum of Taka.

Dated this day of , 18 .

(Seal) (*Signature*)

(Where a bond with sureties is to be executed, add)–We do hereby declare ourselves sureties for the above named that he will be of good behaviour to Government and to all the citizens of Bangladesh during the said term or until the completion of the said inquiry; and, in case of his making default therein, we bind ourselves, jointly and severally, to forfeit to Government the sum of Taka .

Dated this day of , 18 .

(*Signature*)

XII.–SUMMONS ON INFORMATION OF A PROBABLE BREACH OF THE PEACE

(See section 114)

To of ,

WHEREAS it has been made to appear to me by credible information that (*state the substance of the information*), and that you are likely to commit a breach of the peace (*or* by which act a breach of the peace will probably be occasioned), you are hereby required to attend in person (or by a duly authorized agent) at the Office of the Magistrate of on the day of , 18 , at ten o'clock in the forenoon, to show cause why you should not be required to enter into a bond for Taka [*when sureties are required, add,* and also to give security by the bond of one (*or* two, *as the case may be*) surety (*or* sureties) in the sum of Taka (*each if more than one*)] that you will keep the peace for the term of .

Given under my hand and the seal of the Court, this day of , 18 .

(*Seal*) (*Signature*)

XIII.–WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY TO KEEP THE PEACE

(See section 123)

To the Superintendent (*or* Keeper) of the Jail at .

WHEREAS (*name and address*) appeared before me in person (or by his authorized agent) on the day of

in obedience to a summons calling upon him to show cause why he should not enter into a bond for Taka with one surety (*or* a bond with two sureties each in Taka), that he, the said (*name*), would keep the peace for the period of months ; and whereas and order was then made requiring the said (*name*) to enter into and find such security (*state the security ordered when it differs from that mentioned in the summons*), and he has failed to comply with the said order;

This is to authorize and require you, the said Superintendent (*or* Keeper), to receive the said (*name*), into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of (*term of imprisonment*) unless he shall in the meantime be lawfully ordered to be released and to return this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this day of , 18 .

(*Seal*) (*Signature*)

XIV.–WARRANT OF COMMITMENT ON FAILURE TO FIND SECURITY FOR GOOD BEHAVIOR

(See section 123)

To the Superintendent (*or* Keeper) of the Jail at .

WHEREAS it has been made to appear to me that (*name and description*) has been and is lurking within the district of having no ostensible means of subsistence (*or* and that he is unable to give any satisfactory account of himself);

or

WHEREAS evidence of the general character of (*name and description*) has been adduced before me and recorded, from which it appears that he is an habitual robber (*or* house-breaker, etc., *as the case may be*);

And whereas an order has been recorded stating the same and requiring the said (*name*) to furnish security for his good behaviour for the term of (*state the period*) by entering into a bond with one surety (*or* two or more sureties, *as the case may be*), himself for Taka and the said surety (*or* each of the said sureties) for Taka, , and the said (*name*) has failed to comply with the said order and for such default has been adjudged imprisonment for (*state the term*) unless the said security be sooner furnished;

This is to authorize and require you, the said Superintendent (*or* Keeper), to receive the said (*name*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of (*term of imprisonment*) unless he shall in the meantime be lawfully ordered to be released and to return this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

XV.–WARRANT TO DISCHARGE A PERSONED IMPRISON ON FAILURE TO GIVE SECURITY.

(See section 123 *and* 124*)*

To the Superintendent (*or* Keeper) of the Jail at (*or other officer in whose custody the person is*).

WHEREAS (*name and description of prisoner*) was committed to your custody under warrant of the Court, dated the day of and has since duly given security under section of the Code of Criminal Procedure;

or

and there have appeared to me sufficient grounds for the opinion that he can be released without hazard to the community ;

This is to authorize and require you forthwith to discharge the said (*name*) from your custody unless he is liable to be detained for some other cause.

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

XVI.–ORDER FOR THE REMOVAL OF NUISANCES

(See section 133)

To (*name, description and address).*

WHEREAS it has been made to appear to me that you have caused an obstruction (*or nuisance*) to persons using the public roadway (*or other public place*) which, etc., (*describe the road or public place*), by, etc., (*state what it is that causes the obstruction or nuisance*), and that such obstruction (or nuisance) still exists;

or

WHEREAS it has been made to appear to me that you are carrying on as owner, or manager, the trade or occupation of (*state the particular trade or occupation and the place where it is carried on*), and that the same is injurious to the public health (or comfort) by reason (*state briefly in what manner the injurious effects are caused*), and should be suppressed or removed to a different place;

or

WHEREAS it has been made to appear to me that you are the owner (or are in possession of or have the control over) a certain tank (or well or excavation) adjacent to the public way (*describe the thoroughfare*), and that the safety of the public is endangered by reason of the said tank (*or* well *or* excavation) being without a fence (*or* insecurely fenced);

or

WHEREAS, etc., etc. (*as the case may be*);

I do hereby direct and require you within (*state the time allowed*) to (*state what is required to be done to abate the nuisance*) or to appear at in the Court of on the day of next, and to show cause why this order should not be enforced;

or

I do hereby direct and require you within (*state the time allowed*) to cease carrying on the said trade or occupation at the said place, and not again to carry on the same, or to remove the said trade from the place where it is now carried on, or to appear, etc.;

or

I do hereby direct and require you within (*state the time allowed*) to put up a sufficient fence (*state the kind of fence and the part to be fenced)*; or to appear, etc.;

or

I do hereby direct and require you, etc., etc. (*as the case may be*).

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

Form XVII.–[*Omitted by the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978), Schedule, sl. 101(a).*]

XVIII. - MAGISTRATE'S NOTICE AND PEREMPTORY ORDER

[1][* * *]

(See Section 140)

To (*name, description and address)*.

I HEREBY give you notice that [2][it has been] found that the order issued on the day of requiring you (*state substantially the requisition in the order*) is reasonable and proper. Such order has been made absolute, and I hereby direct and require you to obey the said order within (*state the time allowed*), on peril of the penalty provided by the Penal Code for disobedience thereto.

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

---

1 The words "AFTER THE FINDING BY A JURY" were omitted by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The words "it has been" were substituted for the words "the Jury duly appointed on the petition presented by you on the day of have" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

XIX. - INJUNCTION TO PROVIDE AGAINST IMMINENT DANGER PENDING INQUIRY [1][* * *]

(See Section 142)

To (*name, description and address*),

WHEREAS the inquiry [2][into the conditional order issued by me on the day of 18 ,] is still pending, and it has been made to appear to me that the nuisance mentioned in the said order is attended with so imminent serious danger to the public as to render necessary immediate measures to prevent such danger, I do hereby, under the provisions of section 142 of the Code of Criminal Procedure, direct and enjoin you forthwith to (*state plainly what is required to be done as a temporary safeguard*), pending the result of the local inquiry [3][* * *].

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

XX.- MAGISTRATE'S ORDER PROBIBITING THE REPETITION, ETC., OF A NUISANCE.

(See Section 143)

To (*name, description and address*).

WHEREAS it has been made to appear to me that, etc., (*state the proper recital, guided* by Form No. XVI or Form No. XXI, *as the case may be*);

I do hereby strictly order and enjoin you not to repeat the said nuisance by again placing or causing or permitting to be placed, etc. (*as the case may be*).

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

---

1 The words "BY A JURY" were omitted by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The words "into the conditional order issued by me on the day of 19," were substituted for the words, figure and comma "by a Jury appointed to try whether my order issued on the day of 18 , is reasonable and proper" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

3 The words "by the Jury" were omitted by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

XXI. - MAGISTRATE'S ORDER TO PREVENT OBSTRUCTION, RIOT, ETC.
(See Section 144)

To (*name, description and address*).

WHEREAS it has been made to appear to me that you are in possession (*or* have the management) of (*describe clearly the property*), and that, in digging a drain on the said land, you are about to throw or place a portion of the earth and stones dug up upon the adjoining public road, so as to occasion risk of obstruction to persons using the road;

or

WHEREAS it has been made to appear to me that you and a number of other persons (*mention the class of persons*) are about to meet and proceed in a religious procession along the public street, etc., (*as the case may be*), and that such procession is likely to lead to a riot or an affray;

or

WHEREAS etc., etc. (*as the case may be*);

I do hereby order you not to place or permit to be placed any of the earth or stones dug from land on any part of the said road;

or

I do hereby prohibit the procession passing along the said street, and strictly warn and enjoin you not to take any part in such procession (*or as the case recited may require*).

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

XXII. MAGISTRATE'S ORDER DECLARING PARTY ENTITLED TO RETAIN POSSESSION OF LAND, ETC., IN DISPUTE.
(See Section 145)

It appearing to me, on the grounds duly recorded, that a dispute, likely to induce a breach of the peace, existed between (*describe the parties by name and residence, or residence only if the dispute be between bodies of villagers*) concerning certain (*state concisely the subject of dispute*), situate within the local limits of my jurisdiction, all the said parties were called upon to give in written statement of their respective claims as to the fact of actual possession of the said

(*the subject of dispute*), and being satisfied by due inquiry had thereupon, without reference to the merits of the claim of either of the said parties to the legal right of possession, that the claim of actual possession by the said (*name or names or description*) is true;

I do decide and declare that he is (*or they are*) in possession of the said (*the subject of dispute*) and entitled to retain such possession until ousted by due course of law, and do strictly forbid any disturbance of his (*or their*) possession in the meantime.

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

XXIII. - WARRANT OF ATTACHEMENT IN THE CASE OF A DISPUTE AS TO THE POSSESSION OF LAND, ETC.

(See Section 146)

To the Police-officer in charge of the Police-station at
[or, To the Collector of].

WHEREAS it has been made to appear to me that a dispute likely to induce a breach of the peace existed between (*describe the parties concerned by name and residence, or residence only if the dispute be between bodies of villagers*) concerning certain (*state concisely the subject of dispute*) situate within the limits of my jurisdiction, and the said parties were thereupon duly called upon to state in writing their respective claims as to the fact of actual possession of the said (*the subject of dispute*), and whereas, upon due inquiry into the said claims, I have decided that neither of the said parties was in possession of the said (*the subject of dispute*) [*or* I am unable to satisfy myself as to which of the said parties was in possession as aforesaid];

This is to authorize and require you to attach the said (*the subject of dispute*) by taking and keeping possession thereof, and to hold the same under attachment until the decree or order of a competent Court determining the rights of the parties, or the claim to possession, shall have been obtained, and to return this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

XXIV. - MAGISTRATE'S ORDER PROHIBITING THE DOING OF ANYTHING ON LAND OR WATER.

(See Section 147)

A DISPUTE having arisen concerning the right of use of (*state concisely the subject of dispute*) situate within the limits of my jurisdiction, the possession of which land (*or* water) is claimed exclusively by (*describe the person or persons*), and it appearing to me, on due inquiry into the same, that the said land (*or* water) has been open to the enjoyment of such use by the public (*or if by an individual or a class of persons, describe him or them*) and (*if the use can be enjoyed throughout the year*) that the said use has been enjoyed within three months of the institution of the said inquiry (*or if the use is enjoyable only at particular seasons, say* "during the last of the seasons at which the same is capable of being enjoyed");

I do order that the said (*the claimant or claimants of possession*), or any one in their interest, shall not take (or retain) possession of the said land (*or* water) to the exclusion of the enjoyment of the right of use aforesaid, until he (or they) shall obtain the decree or order of a competent Court adjudging him (*or* them) to be entitled to exclusive possession.

Given under my hand and the seal of the Court, this day of 18 .

(*Seal*) (*Signature*)

XXV. - BOND AND BAIL-BOND ON A PRELIMINARY INQUIRY BEFORE A POLICE-OFFICER

(See Section 169)

I, (*name*), of , being charged with the offence of and after inquiry required to appear before the Magistrate of ,

or

and after inquiry called upon to enter into may own recognizance to appear when required, do hereby bind myself to appear at , in the Court of , on the day of next (or on such day as I may hereafter be required to attend) to answer further to the said charge, and, in case of my making default herein, I bind myself to forfeit to Government the sum of Taka .

Dated this day of 18 .

(Signature)

I hereby declare myself (*or* we jointly and severally declare ourselves and each of us) surety (*or* sureties) for the above said that he shall attend at , in the Court of , on the day of next (or on such day as he may hereafter be required to attend), further to answer to the charge pending against him, and, in case of his making default therein, I hereby bind myself (or we hereby bind ourselves) to forfeit to Government, the sum of Taka .

Dated this day of 18 .

(Signature)

XXVI. - BOND TO PROSECUTE OR GIVE EVIDENCE

(See section 170)

I, (*name*), of (*place*), do hereby bind myself to attend at in the Court of at o'clock on the day of next and then and there to prosecute (*or* to prosecute and give evidence) (*or* to give evidence) in the matter of a charge of against one *A. B.*, and, in case of making default herein, I bind myself to forfeit to Government, the sum of Taka .

Dated this day of 18 .

(Signature)

XXVII. - [1][NOTICE TO PUBLIC PROSECUTOR BY MAGISTRATE

(See section 205C)]

THE Magistrate of hereby gives notice that he has [2][sent] one for trial at the next Sessions; and the Magistrate hereby instructs the [3][Public Prosecutor] to conduct the prosecution of the said case.

The charge against the accused is that, etc., (*state the offence as in the charge*).

Dated this day of 18 .

(Signature)

---

1 The heading "NOTICE TO PUBLIC PROSECUTOR BY MAGISTRATE (*See section 205C*)" were substituted for the former heading "NOTICE OF COMMITMENT BY MAGISTRATE TO GOVERNMENT PLEADER" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

2 The words "sent" was substituted for the word "committed" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

3 The words "Public Prosecutor" were substituted for the words "Government Pleader" by section 2 and Schedule of the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978).

XXVIII.–CHARGES

(See Sections 221, 222 223)

(I) CHARGES WITH ONE HEAD

(a) I, [*name and office of Magistrate, etc.*,], hereby charge you [*name of accused person*] as follows:–

On Penal Code, section 121.

(b) that you, on or about the day of at , waged war against Bangladesh, and thereby committed an offence punishable under section 121 of the Penal Code, and within the cognizance of the Court of Session *when the accused is to be tried by the High Court Division in the exercise of its original criminal jurisdiction, for* Court of Session *substitute High Court Division.*

(c) Any I hereby direct that you be tried by the said Court on the said charge.

[*Signature and seal of the Magistrate*]

[*To be substituted for* (*b*)]:–

On section 124.

(2) That you, on or about the day of at , with the intention of inducing the President of Bangladesh to refrain from exercising a lawful power as such President, assaulted him, and thereby committed an offence punishable under section 124 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

On section 161.

(3) That you, being a public servant in the Department, directly accepted from [*state the name*], for another party [*state the name*] a gratification other than legal remuneration, as a motive for forbearing to do an official act, and thereby committed an offence punishable under section 161 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

(4) That you, on or about the day of , at , did [*or* omitted to do, *as the case may be*] , such conduct being contrary to the provisions of Act , section , and known by you to be prejudicial to , and thereby committed an offence punishable under section 166 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

On section 166.

(5) That you, on or about the day of , at, in the course of the trial of , before , stated in evidence that " " which statement you either knew or believed to be false, or did not believe to be true, and thereby committed an offence punishable under section 193 of the Penal Code, and within the cognizance of the Court of Session [or High Court Division.]

On section 193.

(6) That you, on or about the day of , at , committed culpable homicide not amounting to murder, causing the death of , and thereby committed an offence punishable under section 304 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

On section 304.

(7) That you, on or about the day of , at , abetted the commission of suicide by A. B., a person in a state of intoxication, and thereby committed an offence punishable under section 306 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

On section 306.

(8) That you, on or about the day of , at , voluntarily caused grievous hurt to , and thereby committed an offence punishable under section 325 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

On section 325.

(9) That you, on or about the day of , at , robbed [*state the name*], and thereby committed an offence punishable under section 392 of the Penal Code, and within the cognizance of the High Court Division, of Session [*or* High Court Division.]

On section 392

(10) That you, on or about the day of , at , committed dacoity, an offence punishable under section 395 of the Penal Code, and within the cognizance of the Court of Session [or High Court Division.]

On section 395.

[*In cases tried by Magistrates substitute* "within my cognizance" for "within the cognizance of the Court of Session, ", and *in (c) omit* "by the said Court"].

(II) CHARGES WITH TWO OR MORE HEADS

(a) I, [*name and office of Magistrate, etc.*,], hereby charge you [*name of accused person*] as follows:–

(b) *First*.– That you, on or about the day of , at , knowing a coin to be counterfeit, delivered the same to another person, by name A. B., as genuine, and thereby committed an offence punishable under section 241 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

On section 241.

Secondly.– That you, on or about the day of , at , knowing a coin to be counterfeit, attempted to induce an other person, by name *A. B*, to receive it as genuine, and thereby committed an offence punishable under section 241 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

(c) And I hereby direct that you be tried by the said Court on the said charge.

[*Signature and seal of the Magistrate*]

[*To be substituted for* (*b*)]:–

On sections 302 and 304.

(2) *First*.–That you, on or about the day of , at , committed murder by causing the death of , and thereby committed an offence punishable under section 302 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

Secondly.–That you, on or about the day of , at , by causing the death of , committed culpable homicide not amounting to murder, and thereby committed an offence punishable under section 304 of the Penal Code, and within the cognizance of the Court of Session or High Court Division.]

On sections 379 and 382.

(3) *First*.–That you, on or about the day of , at , committed theft, and thereby committed an offence punishable under section 379 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

Secondly.–That you, on or about the day of , at , committed theft, having made preparation for causing death to a person in order to the committing of such theft, and thereby committed an offence punishable under section 382 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

Thirdly.–That you, on or about the day of , at , committed theft, having made preparation for causing restraint to a person in order to the effecting of your escape after the committing of such theft, and thereby committed an offence punishable under section 382 of the Penal Code, and within the cognizance of the Court of Session [or High Court Division.]

Fourthly.–That you, on or about the day of , at , committed theft, having made preparation for causing fear of hurt to a person in order to the retaining of property taken by such theft, and thereby committed an offence punishable under section 382 of the Penal Code, and within the cognizance of the Court of Session [or High Court Division.]

Alternative charge on section 193.

(4) That you, on or about the day of , at , in the course of the inquiry into , before , stated in evidence that " " , and that you, on or about the , day of , at , in the course of the trial of , before , stated in the evidence that " ", one of which statements you either knew or believed to be false, or did not believe to be true, and thereby committed an offence punishable under section 193 of the Penal Code, and within the cognizance of the Court of Session [*or* High Court Division.]

[*In cases tried by Magistrates substitute "*within my cognizance" *for* "within the cognizance of the Court of Session" *and in (c) omit* "by the said Court".]

(III) CHARGES FOR THEFT AFTER PREVIOUS CONVICTION

I, [*name and office of Magistrate, etc.*], hereby charge you (*name of accused person*) as follows :–

That you, on or about the day of , at , committed theft, and thereby committed an offence punishable under section 379 of the Penal Code, and within the cognizance of the Court of Session *or* [$\frac{\text{High Court Division}}{\text{Magistrate}}$ *as the case may be*].

And you, the said (*name of accused*), stand further charged that you, before the committing of the said offence, that is to say, on the day of , had been convicted by the (*state Court by which conviction was had*) at of an offence punishable under Chapter XVII of the Penal Code, with imprisonment for a term of three years, that is to say, the offence of house-breaking by night (*describe the offence in the words used in the section under which the accused was convicted*), which conviction is still in full force and effect, and that you are thereby liable to enhanced punishment under section 75 of the Penal Code.

And I hereby direct that you be tried, etc.

XXIX.- WARRANT OF COMMITMENT ON A SENTENCE OF IMPRISONMENT OR FINE IF PASSED BY A MAGISTRATE.

(See Sections 245 and 258)

To the Superintendent (*or Keeper*) of the Jail at .

WHEREAS on the day of 18, (*name of prisoner*), the (1st, 2nd , 3rd, *as the case may be*) prisoner in case No. of the Calendar for 18 , was convicted before me (*name and official designation*) of the offence of (*mention the offence or offences concisely*) under section (*or sections*) of the Penal Code (or of Act), and was sentenced to (*state the punishment fully and distinctly*);

This is to authorize and require you, the said Superintendent (or Keeper), to receive the said (*prisoner's name*) into your custody in the said Jail, together with this warrant, and there carry the aforesaid sentence into execution according to law.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XXX.- WARRANT OF IMPRISONMENT ON FAILURE TO RECOVER AMENDS BY ATTACHMENT AND SALE.

(See Section 250)

To the Superintendent (*or Keeper*) of the Jail at .

WHEREAS (*name and description*) has brought against (*name and description of the accused person*) the complaint that (*mention it concisely*) and the same has been dismissed as false and frivolous (*or vexatious*), and the order of dismissal awards payment by the said (*name of complainant*) of the sum of Taka as amends ; and whereas the said sum has not been paid and an order has been made for his simple imprisonment in Jail for the period of days, unless the aforesaid sum be sooner paid;

This is to authorize and require you the said Superintendent (*or* Keeper), to receive the said (*name*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of (*term of imprisonment*) subject to the provisions of section 69 of the Penal Code, unless the said sum be sooner paid, and on the receipt thereof, forthwith to set him at liberty, returning this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XXXI.- SUMMONS TO WITNESS
(See sections 69 and 252)

To of .

WHEREAS complaint has been made before me that of has (*or* is suspected to have) committed the offence of (*state the offence concisely with time and place*), and it appears to me that you are likely to give material evidence for the prosecution;

You are hereby summoned to appear before this Court on the day of next at ten o'clock in the forenoon, to testify what you know concerning the matter of the said complaint, and not to depart thence without leave of the Court; and you are hereby warned that, if you shall without just excuse neglect or refuse to appear on the said date, a warrant will be issued to compel your attendance.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XXXII and XXXIII.– [*Omitted by the Law Reforms Ordinance, 1978 (Ordinance No. XLIX of 1978), Schedule.*]

XXXIV. – WARRANT OF COMMITMENT UNDER SENTENCE OF DEATH
(See section 374)

To the Superintendent (or Keeper) of the Jail at .

WHEREAS at the Session held before me on the day of 18, (*name of prisoner*), the (1st, 2nd, 3rd, *as the case may be*) prisoner in case No. of the Calendar at the said Session was duly convicted of the offence of culpable homicide amounting to murder under section of the Penal Code, and sentenced to suffer death, subject to the confirmation of the said sentence by the Court of ;

This is to authorize and require you, the said Superintendent (or Keeper), to receive the said (*prisoner's name*) into your custody in the said Jail, together with this warrant, and him there safely to keep until you shall receive the further warrant or order of this Court, carrying into effect the order of the said Court.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XXXV. - WARRANT OF EXECUTION ON A SENTENCE OF DEATH
(See section 381)

To the Superintendent (*or* Keeper) of the Jail at .

WHEREAS (*name of prisoner*), the (1st, 2nd 3rd, *as the case may be*) prisoner in case No. of the Calendar at the Session held before me on the day of 18 , has been by a warrant of this Court, dated the day of , committed to your custody under sentence of death; and whereas the order of the Court of confirming the said sentence has been received by this Court;

This is to authorize and require you, the said Superintendent (*or* Keeper), to carry the said sentence into execution by causing the said to be hanged by the neck until he be dead, at (*time and place of execution*), and to return this warrant to the Court with an endorsement certifying that the sentence has been executed.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XXXVI. - WARRANT AFTER A COMMUTATION OF A SENTENCE
(See section 381 and 382)

To the Superintendent (*or* Keeper) of the Jail at .

WHEREAS at a Session held on the day of 18 , (*name of prisoner*), the (1st, 2nd 3rd, *as the case may be*) prisoner in case No. of the Calendar at the said Session, was convicted of the offence of punishable under section of the Penal Code, and sentenced to , and was thereupon committed to your custody; and whereas by the order of the Court of (a duplicate of which is hereunto annexed) the punishment adjudged by the said sentence has been commuted to the punishment of transportation for life (*or as the case may be*);

This is to authorize and require you, the said Superintendent (*or* Keeper) safely to keep the said (prisoner's name) in your custody in the said Jail, as by law is required, until he shall be delivered over by you to the proper authority and custody for the purpose of his undergoing the punishment of transportation under the said order,

or

if the mitigated sentence is one of imprisonment, say, after the words, "custody in the said Jail," "and there to carry into execution the punishment of imprisonment under the said order according to law".

Given under my hand and the seal of the Court, this

day of , 18 .

(Seal) *(Signature)*

XXXVII. - WARRANT TO LEVY A FINE BY ATTACHEMENT AND SALE

(See section 386 (1) (a))

To (*name and designation of the Police-officer or other person or persons who is or are to execute the warrant*).

WHEREAS (*Name and description of the offender*) was on the day of 18 , convicted before me of the offence of (*mention the offence concisely*), and sentenced to pay a fine of Taka ; and whereas the said (*name*) although required to pay the said fine, has not paid the same or any part thereof;

This is to authorize and require you to attach any movable property belonging to the said (*name*) which may be found within the district of ; and, if within (*state the number of days or hours allowed*) next after such attachment the said sum shall not be paid (or forthwith), to sell the movable property attached, or so much thereof as shall be sufficient to satisfy the said fine, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Given under my hand and the seal of the Court, this

day of , 18 .

(Seal) *(Signature)*

[1][XXXVIIA. - BOND FOR APPEARANCE OF OFFENDER RELEASED PENDING REALISATION OF FINE.

(See section 388)

WHEREAS I, (*name*), inhabitant of (*place*), have been sentenced to pay a fine of Taka and in default of payment thereof to undergo imprisonment for ; and whereas the Court has been pleased to order my release on condition of my executing a bond for my appearance on the following date (*or* dates) namely:–

I hereby bind myself to appear before the Court of at o'clock on the following date (*or* dates) namely:– , and in case of making default herein, I bind myself to forfeit to Government, the sum of Taka .

Dated this day of 18 .

(Signature)

Where a bond with sureties is to be executed, add–

We do hereby declare ourselves sureties for the above named that he will appear before the Court of on the following date (*or* dates) namely:– and , in case of his making default therein, we bind ourselves jointly and severally to forfeit to Government, the sum of Taka .

(Signature)]

XXXVIII. -WARRANT OF COMMITMENT IN CERTAIN CASES OF CONTEMPT WHEN A FINE IS IMPOSED.

(See section 480)

To the Superintendent (*or* Keeper) of the Jail at .

WHEREAS at a Court holden before me on this day (*name and description of the offender*) in the presence (*or* view) of the Court Committed wilful contempt;

And whereas for such contempt the said (*name of offender*) has been adjudged by the Court to pay a fine of Taka , or in default to suffer simple imprisonment for the space of (*state the number of months, or days*);

---

[1] Form XXXVIIA was inserted by the Code of Criminal Procedure (Amendment) Act, 1923 (Act No. XVIII of 1923).

This is authorize and require you, the Superintendent (*or* Keeper) of the said Jail, to receive the said (*name of offender*) into your custody, together with this warrant, and him safely to keep in the said jail for the said period of (*term of imprisonment*), unless the said fine be sooner paid; and, on the receipt thereof, forthwith to set him at liberty, returning this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this

day of , 18 .

(Seal) *(Signature)*

XXXIX. -MAGISTRATE'S OR JUDGE'S WARRANT OF COMMITMENT OF WITNESS REFUSING TO ANSWER.

(See section 485)

To (*name and description of officer of Court*).

WHEREAS (*name and description*), being summoned (*or* brought before this Court) as a witness and this day required to give evidence on an inquiry into an alleged offence, refused to answer a certain question (*or* certain questions) put to him touching the said alleged offence, and duly recorded, without alleging any just excuse for such refusal, and for his contempt has been adjudged detention in custody for (*term of detention adjudged*);

This is to authorize and require you to take the said (*name*) into custody, and him safely to keep in your custody for the space of days, unless in the meantime he shall consent to be examined and to answer the questions asked of him, and on the last of the said days, or forthwith on such consent being known, to bring him before this Court to be dealt with according to law, returning this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this

day of , 18 .

(Seal) *(Signature)*

XL. -WARRANT OF IMPRISONEMENT ON FAILURE TO PAY MAINTENANCE.

(See section 488)

To the Superintendent (*or* Keeper) of the Jail at .

WHEREAS (*name, description and address*) has been proved before me to be possessed of sufficient means to maintain his wife (*name*) [or his child (*name*), who is by reason of (*state the reason*) unable to maintain herself (*or himself*)] and to have neglected or refused) to do so, and an order has been duly made requiring the said (name) to allow to his said wife (*or* child) for maintenance the monthly sum of Taka : and whereas it has been further proved that the said (*name*) in willful disregard of the said order has failed to pay Taka , being the amount of the allowance for the month (*or* months) of : And thereupon an order was made adjudging him to undergo simple (*or* rigorous) imprisonment in the said Jail for the period of ;

This is to authorize and require you, the said Superintendent (or Keeper), to receive the said (*name*) into your custody in the said Jail, together with this warrant, and there carry the said order into execution according to law, returning this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this

day of , 18 .

(Seal) *(Signature)*

XLI. - WARRANT TO ENFORCE THE PAYMENT OF MAINTENANCE BY ATTACHEMENT AND SALE.

(See section 488)

To (*name and designation of the Police-officer or other person to execute the warrant.*)

WHEREAS an order has been duly made requiring (*name*) to allow to his said wife (*or* child) for maintenance the monthly sum of Taka , and whereas the said (name) in willful disregard of the said order has failed to pay Taka , being the amount of the allowance for the month (*or* months) of ;

(Schedule V.–Forms)

This is to authorize and require you to attach any movable property belonging to the said (*name*) which may be found within the district of , and if within (*state the number of days or hours allowed*) next after such attachment the said sum shall not be paid (*or* forthwith), to sell the movable property attached, or so much thereof as shall be sufficient to satisfy the said sum, returning this warrant, with an endorsement certifying what you have done under it, immediately upon its execution.

Given under my hand and the seal of the Court, this

day of , 18 .

(Seal) *(Signature)*

XLII. - BOND AND BAIL-BOND ON A PRELIMINARY INQUIRY BEFORE A MAGISTRATE.

(See sections 496 and 499)

I, (*name*), of (*place*) being brought before the Magistrate of (*as the case may be*) charged with the offence of , and required to give security for my attendance in his Court and at the Court of Session if required, do bind myself to attend at the Court of the said Magistrate on every day of the preliminary inquiry into the said charge, and, should the case be sent for trial by the Court of Session, to be, and appear before the said Court when called upon to answer the charge against me; and, in case of my making default herein, I bind myself to forfeit to Government, the sum of Taka .

Dated this day of 18 .

(Signature)

I hereby declare myself (or We jointly and severally declare ourselves and each of us) surely (*or* sureties) for the said (*name*) that he shall attend at the Court of on every day of the preliminary inquiry into the offence charged against him, and, should the case be sent for trial by the Court of Session, that he shall be, and appear, before the said Court to answer the charge against him, and in case of his making default therein, I bind myself (*or* we bind ourselves) to forfeit to Government, the sum of Taka .

Dated this day of 18 .

(Signature)

XLIII. WARRANT TO DISCHARGE A PERSON IMPRISONED ON FAILURE TO GIVE SECURITY.

(See section 500)

To the Superintendent (*or* Keeper) of the Jail at .
(or other officer in whose custody the person is).

WHEREAS (*name and description of prisoner*) was committed to your custody under warrant of this Court, dated the
day of , and has since with his surety (*or* sureties) duly executed a bond under section 499 of the Code of Criminal Procedure;

This to authorize and require you forthwith to discharge the said (*name*) from your custody, unless he is liable to be detained for some other matter.

Given under my hand and the seal of the Court, this
day of , 18 .

(Seal) *(Signature)*

XLIV. - WARRANT OF ATTACHEMENT TO ENFORCE A BOND

(See sections 514)

To the Police-officer in charge of the Police-station at .

WHEREAS (*name, description and address of person*) has failed to appear on (*mention the occasion*) pursuant to his recognizance, and has by such default forfeited to Government, the sum of Taka (*the penalty in the bond*); and whereas the said (*name of person*) has, on due notice to him, failed to pay the said sum or show any sufficient cause why payment should not be enforced against him;

This is to authorize and require you to attach any movable property of the said (*name*) that you may find within the district of , by seizure and detention, and, if the said amount be not paid within three days, to sell the property so attached or so much of it as may be sufficient to realize the amount aforesaid, and to make return of what you have done under this warrant immediately upon its execution.

Given under my hand and the seal of the Court, this
day of , 18 .

(Seal) *(Signature)*

XLV. - NOTICE TO SURETY ON BREACH OF A BOND

(See section 514)

To of .

WHEREAS on the day of 18 , you became surety of (*name*) of (*place*) that he should appear before this Court on the day of and bound yourself in default thereof to forfeit the sum of Taka to Government, and whereas the said (*name*) has failed to appear before this Court and by reason of such default you have forfeited the aforesaid sum of Taka ;

You are hereby required to pay the said penalty or show cause, within days from this date, why payment of the said sum should not be enforced against you.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XLVI. - NOTICE TO SURETY OF FORFEITURE OF BOND FOR GOOD BEHAVOUR.

(See section 514)

To of .

WHEREAS on the day of 18 , you became surety by a bond for (*name*) of (*place*) that he would be of good behavior for the period of and bound yourself in default thereof to forfeit the sum of Taka to Government, and whereas the said (*name*) has been convicted of the offence of (*mention the offence concisely*) committed since you became such surety, whereby your security bond has become forfeited;

You are hereby required to pay the said penalty of Taka , or to show cause within days why it should not be paid.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XLVII. - WARRANT OF ATTACHMENT AGAINST A SURETY
(See section 514)

To of .

WHEREAS (*name, description and address*) has bound himself as surety for the appearance of (*mention the condition of the bond*), and the said (*name*) has made default, and thereby forfeited to Government the sum of Taka
(*the penalty in the bond*);

This is to authorize and require you to attach any movable property of the said (*name*) which you may find within the district of , by seizure and detention ; and, if the said amount be not paid within three days, to sell the property so attached, or so much of it as may be sufficient to realize the amount aforesaid, and make return of what you have done under this warrant immediately upon its execution.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

XLVIII. - WARRANT OF COMMITMENT OF THE SURETY OF AN ACCUSED PERSON ADMITTED TO BAIL.

(See section 514)

To the Superintendent (*or* Keeper) of the Civil Jail at .

WHEREAS (*name and description of surety*) has bound himself as a surety for the appearance of (*state the condition of the bond*) and the said (*name*) has therein made default whereby the penalty mentioned in the said bond has been forfeited to Government, and whereas the said (*name of surety*) has, on due notice to him, failed to pay the said sum or show any sufficient cause why payment should not be enforced against him, and the same cannot be recovered by attachment and sale of movable property of his, and an order has been made for his imprisonment in the civil Jail for (*specify the period*);

This is to authorize and require you, the said Superintendent (*or* Keeper) to receive the said (*name*) into your custody with this warrant and him safely to keep in the said Jail for the said (*term of imprisonment*), and to return this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this day of 18 .

(Seal) *(Signature)*

XLIX. –NOTICE TO THE PRINCIPAL OF FORFEITURE OF A BOND TO KEEP THE PEACE.

(See section 514)

To (*name, description and address*).

WHEREAS on the day of 18 , you entered into a bond not to commit, etc., (*as in the bond*), and proof of the forfeiture of the same has been given before me and duly recorded;

You are hereby called upon to pay the said penalty of Taka , or to show cause before me within days why payment of the same should not be enforced against you.

Dated this day of 18 .

(Seal) *(Signature)*

L. - WARRANT TO ATTACH THE PROPERTY OF THE PRINCIPAL ON BREACH OF A BOND TO KEEP THE PEACE.

(See section 514)

To (*name and designation of Police-officer*), at the Police-station of .

WHEREAS (*name and description*) did, on the day of 18 , enter into a bond for the sum of Taka binding himself not to commit a breach of the peace, etc. (*as in the bond*), and proof of the forfeiture of the said bond has been given before me and duly recorded; and whereas notice has been given to the said (*name*) calling upon him to show cause why the said sum should not be paid, and he has failed to do so or to pay the said sum;

This is to authorize and require you to attach by seizure movable property belonging to the said (*name*) to the value of Taka which you may find within the district of , and, if the said sum be not paid within , to sell the property so attached, or so much of it as may be sufficient to realize the same; and to make return of what you have done under this warrant immediately upon its execution.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

LI. - WARRANT OF IMPRISONMENT ON BREACH OF A BOND TO KEEP THE PEACE.

(See section 514)

To the Superintendent (*or* Keeper) of the Civil Jail at .

WHEREAS proof has been given before me and duly recorded that (*name and description*) has committed a breach of the bond entered into by him to keep the peace, whereby he has forfeited to Government, the sum of Taka ; and whereas the said (*name*) has failed to pay the said sum or to show cause why the said sum should not be paid, although duly called upon to do so and payment thereof and an order has been made for the imprisonment of the said (*name*) in the Civil Jail for the period of (*term of imprisonment*);

This is to authorize and require you, the said Superintendent (*or* Keeper) of the said Civil Jail, to receive the said (*name*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of (*term of imprisonment*), and to return that warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this day of , 18 .

(Seal) *(Signature)*

LII. - WARRANT OF ATTACHMENT AND SALE ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR.

(See section 514)

To the Police-officer in charge of the Police-station at .

WHEREAS (*name, description and address*) did, on the

day of 18 , give security by bond in the sum of Taka for the good behavior of (*name, etc., of the principal*) and proof has been given before me and duly recorded of the commission by the said (*name*) of the offence of whereby the said bond has been forfeited; and whereas notice has been given to the said (*name*) calling upon him to show cause why the said sum should not be paid, and he has failed to do so or to pay the said sum;

This is to authorize and require you to attach by seizure movable property belonging to the said (*name*) to the value of Taka which you may find within the district of , and, if the said sum be not paid within, to sell the property so attached, or so much of it as may be sufficient to realize the same, and to make return of what you have done under this warrant immediately upon its execution.

Given under my hand and the seal of the Court, this day of , 19 .

(Seal) *(Signature)*

LIII. - WARRANT OF IMPRISONMENT ON FORFEITURE OF BOND FOR GOOD BEHAVIOUR.

(See section 514)

To the Superintendent (*or* Keeper) of the Civil Jail at .

WHEREAS (*name, description and address*) did, on the day of 19 , give security by bond in the sum of Taka for the good behavior of (*name, etc., of the principal*) and proof of the breach of the said bond has been given before me and duly recorded , whereby the said (*name*) has forfeited to Government, the sum of Taka , and whereas he has failed to pay the said sum or to show cause why the said sum should not be paid although duly called upon to do so, and payment thereof cannot be enforced by attachment of his movable property, and an order has been made for the imprisonment of the said (*name*) in the Civil Jail for the period of (*term of imprisonment*);

This is to authorize and require you, the Superintendent (*or* Keeper), to receive the said (*name*) into your custody, together with this warrant, and him safely to keep in the said Jail for the said period of (*term of imprisonment*), returning this warrant with an endorsement certifying the manner of its execution.

Given under my hand and the seal of the Court, this day of , 19 .

(Seal) *(Signature)*